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No. 94-329

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IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

RONALD W. ROSENBERGER, *et al.*,
Petitioners,
v.

THE RECTOR AND VISITORS OF THE
UNIVERSITY OF VIRGINIA, *et al.*,
Respondents.

On Writ of Certiorari to the
United States Court of Appeals
for the Fourth Circuit

BRIEF FOR THE PETITIONERS

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QUESTION PRESENTED

Whether the Establishment Clause compels a state university to exclude an otherwise eligible student publication from participation in the student activities fund, solely on the basis of its religious viewpoint, where such exclusion would violate the Speech and Press Clauses if the viewpoint of the publication were nonreligious.

LIST OF PARTIES TO THE PROCEEDING

The parties to this proceeding are:

Petitioners:

Ronald W. Rosenberger, as a member of Wide Awake Productions and as Editor-in-Chief of *Wide Awake* magazine; Gregory W. Mourad; and Robert J. Prince.

Respondents:

The Rector and Visitors of the University of Virginia; Edward E. Elson; W.L. Lyons Brown, Jr.; Robert G. Butcher, Jr.; N. Thomas Connally, M.D.; Hovey S. Dabney; Waller H. Horsley; J. Thomas Hulvey, M.D.; Evans B. Jessee; Patricia M. Kluge; Arnold H. Leon; Leigh B. Middleditch, Jr.; Elizabeth D. Morie; Freddie W. Nicholas, Sr.; S. Buford Scott; Jessie B. Wilson, III; Thomas E. Worrell, Jr.; Adam S. Arthur; Alexander G. Gilliam, Jr.; and Ronald J. Stump.

Wide Awake Productions is an unincorporated Contracted Independent Organization of the University of Virginia which publishes *Wide Awake* magazine. It has no parent companies or subsidiaries. Petitioners make this declaration pursuant to Supreme Court Rule 29.

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BRIEF FOR THE PETITIONERS

OPINIONS BELOW

The opinion of the Court of Appeals (Pet. App. 1a-42a) is reported at 18 F.3d 269. The decision of the District Court (Pet. App. 43a-58a) is reported at 795 F. Supp. 175.

JURISDICTION

The judgment of the Court of Appeals was entered on March 14, 1994. A timely petition for rehearing with a suggestion for rehearing in banc was denied on May 23, 1994. See Pet. App. 59a-60a. This Court issued a writ of certiorari on October 31, 1994. This Court's jurisdiction is under 28 U.S.C. § 1254(1).

CONSTITUTIONAL PROVISIONS AND UNIVERSITY GUIDELINES INVOLVED

In addition to the First and Fourteenth Amendments to the United States Constitution, this case involves the University of Virginia Student Activity Fee Statement of Purpose and Funding Guidelines, which are set forth in full at Pet. App. 61a-67a.

STATEMENT OF THE CASE

This case involves the refusal of the University of Virginia to subsidize the printing costs of a student publication, called *Wide Awake*, solely and expressly because the viewpoint articulated in the publication is religious. The court below agreed with the students that the University regulation forbidding funding of religious activities "places a presumptively unconstitutional condition upon access to government benefits in violation of the Free Speech and Press Clause of the First Amendment," but held that this presumptively unconstitutional discrimination is required by the Establishment Clause. Pet. App. 39a. The facts are uncontested.

A. The Student Activities Fund

Through its Student Activities Fund ("SAF" or "Fund"), the University of Virginia supports a "wide variety of student organizations, activities, and publications." Pet. App. 2a. In the academic year 1990-91 (when this case arose) the University provided funds to 118 student groups, including some 15 student-written and -edited newspapers and magazines, representing a broad range of interests and perspectives. *Id.* at 4a. The Fund is financed by a mandatory student activities fee of \$14 per semester, paid by each full-time student. Petitioners, like other students, are required to contribute to this fund.

Respondents, the Rector and Visitors of the University, exercise legal control and authority over the operation of the Fund. Pet. App. 3a; See Va. Code Ann. § 23-69,

et seq. (1950). Respondents have delegated authority to allocate SAF monies to the Student Council, an elected student body, subject to review by the University's Student Activities Committee. The decisions of both bodies must be made in accordance with Guidelines established by respondents, which are reproduced at Pet. App. 61a-67a. This case is a constitutional challenge to one provision of those Guidelines.

To qualify for funding, a student group must first attain the status of a "Contracted Independent Organization" ("CIO"). CIO status is available to any group that is composed in its majority of students, is managed by officers who are full-time students, keeps an updated copy of its constitution on file with the University, and pledges in writing not to discriminate. Pet. App. 2a. CIOs are given access to University facilities, including meeting rooms and computer terminals, and have the right to apply for student activity funds. According to the standard CIO agreement, benefits provided to student groups by the University "should not be misinterpreted as meaning that those organizations are part of or controlled by the University, that the University is responsible for the organizations' contracts or other acts or omissions, or that the University approves of the organizations' goals or activities." J.A. 26, see Pet. App. 2a-3a.

The Guidelines specify eleven categories of student activity that are eligible for funding, as well as certain activities and types of organization that are excluded from eligibility. Among the categories of student activity that "[t]he Rector and Visitors have determined * * * relate to the educational purpose of the University and thus are eligible for funding," are "student news, information, opinion, entertainment, or academic communications media groups." Pet. App. 61a. The Guidelines prohibit the funding of religious organizations, fraternities, sororities, honor societies, political organizations, and organizations whose membership is exclusionary. A "religious organization" is defined as "an organization whose purpose is to practice a devotion to an acknowledged ulti-

mate reality or deity." *Id.* at 66a. The Guidelines also prohibit funding for the following purposes: religious activities, payment of honoraria or similar fees, social entertainment or related expenses, philanthropic contributions and activities, political activities, or activities that would jeopardize the University's tax exempt status. *Id.* at 62a-63a. The "religious" exclusion is the only explicitly viewpoint-based ground for exclusion from the program.¹

Once an activity is deemed eligible for funding, the Guidelines prescribe the following criteria for allocating funds among eligible organizations: the size of the group, the University-wide benefit of the group's activities, and the group's financial self-sufficiency. Pet. App. 63a; *id.* at 4a. After an organization is approved for funding, it submits expense vouchers to the Fund, which are paid only upon a determination that the particular expense is eligible for reimbursement. Funds do not go directly to the group. Pet. App. 4a.

During the academic year 1990-91, 343 student organizations qualified as CIOs, of which 135 applied for, and 118 received, student activity funds. Pet. App. 4a. Among the funded organizations were issue-oriented and potentially controversial groups, such as the Gandhi Peace Center, the Federalist Society, Students for Animal Rights, the Lesbian and Gay Student Union, and Student Alliance for Virginia's Environment. J.A. 65. Fifteen publications, representing a wide range of differing per-

¹ The Guidelines prohibit both "religious activities" and "political activities" (Pet. App. 62a, 63a), but the difference in definitions is striking and illuminating. The Guidelines define as a "religious activity" any activity that "promotes or manifests a particular belief(s) in or about a deity or an ultimate reality." Pet. App. 66a. By contrast, the Guidelines state that the "restrictions on funding political activities are not intended to preclude funding of any otherwise eligible student organization which * * * espouses particular positions or ideological viewpoints, including those that may be unpopular or are not generally accepted." Pet. App. 65a-66a. Thus, the University avoids viewpoint discrimination in its definition of "political activities" but not in its definition of "religious activities."

spectives on issues of concern to the student body, received funding. These included *The Declaration*, *Dialogue Magazine*, the *Journal of Law and Politics*, *Loki Science Magazine*, *Oculus*, *Seasons*, *Thoughtlines*, the *University Journal*, the *Virginia Advocate*, the *Virginia Environmental Law Journal*, the *Virginia Literary Review*, and the *Yellow Journal*. Pet. App. 4a n.3. The record shows that the University funds student organizations that "express a variety of ideological viewpoints, including but not limited to viewpoints which are inconsistent with or antagonistic to various religious beliefs." J.A. 38 ¶ 16.

Among the funded organizations in 1990-91 were the Muslim Students Association, the Jewish Law Students Association, and the C.S. Lewis Society. Pet. App. 4a. The Muslim Students Association Constitution identifies the group's purpose as "to promote a better understanding of Islam to the University Community." J.A. 92. Using SAF funds, it publishes a magazine entitled *Al-Salam*, which presents an Islamic viewpoint on issues of world affairs and culture and contains, among other things, discussions of Islamic doctrine.² The Jewish Law Students Association By-Laws state that its purposes are "[t]o encourage Jewish law students to participate in Jewish activities" and to "be a focal point for Jewish activities at the Law School." J.A. 97. The Constitution of the C.S. Lewis Society states that the purpose of the organization is to "promote interest in and discussion of, various literary, moral, and philosophical topics, with a particular emphasis on the work of the 'Oxford Chris-

² See, e.g., A. Azfar, "When language presents a trial of faith," 1 *Al-Salam* 5 (Feb. 1992) (quoting extensively from the Quran and containing such doctrinal statements as: "the ideal speech in Islam is that which is marked by the frequent remembrance of God, speech that would infuse our hearts with the presence of the divine"); I. Saeed, "The pillars that support Islam," 1 *Al-Salam* 6 (Feb. 1992) (discussing the five doctrinal foundations of Islamic religious practice: the Declaration of Faith (*Shahada*), prayer (*salat*), fasting during the holy month of Ramadan (*sawm*), charity (*zakat*), and pilgrimage to Mecca (*Hajj*)). Copies of this issue of *Al-Salam* have been lodged with the Court.

tians.' " J.A. 104. The University has stated that these organizations were funded not as "religious activities," but as "cultural activities." J.A. 21.³

B. Wide Awake Productions

In September 1990, petitioner Ronald W. Rosenberger, an undergraduate student at the University of Virginia, joined with other University of Virginia students to form Wide Awake Productions. Wide Awake Productions is an unincorporated association with the stated purposes of (1) "publish[ing] a magazine of philosophical and religious expression," (2) "facilitat[ing] discussion which fosters an atmosphere of sensitivity to and tolerance of Christian viewpoints," and (3) "provid[ing] a unifying focus for Christians of multicultural backgrounds." J.A. 67, Pet. App. 5a. Wide Awake Productions publishes *Wide Awake: A Christian Perspective at the University of Virginia*. According to the editor's statement in the first issue, the magazine was started when the founders "realized that none of the fifteen student-run publications at the University provided a forum for Christian expression, and we decided to fill that void." J.A. 45. Wide Awake Productions is not affiliated with any religious institution or denomination, and it allows any University student to join, without regard to sex, race, color, or religion. Pet. App. 6a.

As of June 1992, the group had published three issues of the magazine, which are distributed free of charge to about 5,000 students on the campus of the University of Virginia. These issues form part of the record in this

³ An organization named Black Voices, which performs gospel music, was funded in 1990-91. During the fall of 1990, the Associate Dean of Students met with the group's leader and questioned him about "the group's activities and whether they were religious." Because the group "now were praying at practices and encouraging members to be more of a model of faith," the leader told the Associate Dean that "the group as a whole was going to make a decision." Later that year, the group decided to retain its religious identity, and accordingly did not apply for SAF funding. Affidavit of Ronald J. Stump, ¶¶ 15-16, J.A. 73.

case and have been circulated to the Court. As described in the editor's statement in the first issue, *Wide Awake* "offers a Christian perspective on both personal and community issues, especially those relevant to college students at the University of Virginia." *Wide Awake*, Nov./Dec. 1990, at 2; see J.A. 45. The lead cover story in the first issue was on the subject of racism. Other articles dealt with such subjects as crisis pregnancy, fear of airplane travel, and C.S. Lewis's philosophy. The issue also contained a lengthy interview with a professor of economics at the University and a commentary on Biblical passages regarding the abundant life. The featured article in the second issue was entitled "Homosexuals: Can They Change . . . and Should They?" It also included an interview with a professor of mathematics at the University and articles about the problem of evil and free will, the importance of foreign missions, and the meaning of a passage in the Gospel of *John*. *Wide Awake*, Mar./Apr. 1991. The third issue contained articles on eating disorders (entitled "From Calorie to Calvary"), a popular Christian musician, papal teaching on Marxism and the free market, an Augustinian perspective on university pedagogy, and an alumnus's observations on recent developments in Eastern Europe, based on his experiences as a missionary in Moldavia. *Wide Awake*, Sept./Oct. 1991. All of the issues contained book and music reviews and essays about aspects of student life; one included original poetry.

Petitioners do not dispute that *Wide Awake* constitutes a "religious activity" within the meaning of the Guidelines. Pet. App. 7a. As the Court of Appeals noted, the magazine is marked by "unflagging invocation of religious, specifically Christian, themes" and "[t]he journal's pages are pervasively devoted to providing a 'Christian perspective' in printer's ink at the University of Virginia." *Id.* (footnote omitted).

C. The University's Refusal To Fund Wide Awake

Soon after its founding, Wide Awake Productions attained CIO status. It is undisputed that it conformed to all applicable, content-neutral funding eligibility requirements, as set out in the Guidelines, other than the prohibition relating to "religious activities." Specifically, *Wide Awake* falls within the eligibility category of "student news, information, opinion, entertainment, or academic communications media groups." J.A. 61a ¶ 4. In January 1991, the organization submitted an application for funding in the amount of \$5,862, to cover publishing costs.

On February 26, after examining the content of the first issue of the magazine, the Appropriations Committee of the Student Council denied petitioners' request. There is no dispute that the Appropriations Committee's decision was based solely on the content of the publication. Petitioners were sent a letter explaining the basis for the decision:

In reviewing the request by Wide Awake Productions, the . . . Committee determined your organization's request could not be funded as it is a religious activity. This determination was made after reviewing your first issue of *Wide Awake*. In particular, the committee noted in your Editor's Letter that the publication was 'a forum for Christian expression' and a means 'to challenge Christians (in how) to live.'

Pet. App. 8a-9a, J.A. 54. As the letter indicates, the sole basis for denial was that *Wide Awake* is a "religious activity," and the sole basis for the determination that *Wide Awake* is a "religious activity" was the content of the magazine. At no point has the University claimed that Wide Awake Productions has failed to satisfy any other prerequisite for eligibility for funding.

Wide Awake Productions appealed the denial to the full Student Council on March 3, 1991. It contended that the magazine met all applicable funding guidelines and

that the Appropriations Committee's denial of funding on the basis of its religious perspective violated the Constitution. The Student Council denied the appeal and affirmed the Committee's decision without further comment. Pet. App. 9a.

Wide Awake then appealed to the Student Activities Committee, a University committee. On April 16, 1991, in a letter signed by respondent Ronald J. Stump, Associate Dean of Students, the Committee affirmed the denial of funding. Stump wrote:

After reviewing your organization's constitution, copies of the magazine's first two editions, and the arguments presented at last week's appeal by Wide Awake Productions and by [the] Student Council, the Committee determined that the Wide Awake magazine could not be funded as it is a religious activity. In effect, the Student Activities Committee fully supports the decision and reasoning provided to you in the February 26 letter from [the Appropriations Committee].

Pet. App. 9a, J.A. 55. This exhausted all internal avenues of appeal within the University.

D. Proceedings in District Court

Wide Awake Productions, *Wide Awake*, and three of its editors and members ("petitioners") then filed suit in federal district court, pursuant to 42 U.S.C. § 1983, challenging the University's denial of funding on the basis of the religious viewpoint of their publication. They claimed that the University's categorical exclusion of otherwise eligible student publications, solely on the basis of religious perspective, violated their rights to freedom of speech and press, to free exercise of religion, and to equal protection of the law.⁴ They sought declaratory and in-

⁴ Petitioners also raised issues under Article I of the Constitution of Virginia and the Virginia Act for Religious Freedom, Va. Code Ann. §§ 57-1 to -2, but did not pursue those state law claims on appeal. Pet. App. 15a.

junctive relief prohibiting the University from denying funding on the basis of the content or viewpoint of their publication, and compensatory damages of at least \$5,862, representing the sum requested and denied for the first year of publication. J.A. 17. Respondents filed an Answer maintaining, among other things, that the University is legally prohibited, under the Establishment Clause, from providing financial assistance to "religious activities" such as *Wide Awake* magazine. J.A. 20, 23-24. The parties filed cross-motions for summary judgment, and agreed, with minor exceptions,⁵ that there were no disputed issues of material fact and that the case was ripe for summary disposition.

On May 20, 1992, the district court granted respondents' motion for summary judgment and denied petitioners'. The court held, *inter alia*, that application of the Guideline barring any funding of "religious activities" did not result in impermissible viewpoint or content discrimination against petitioners' speech. Pet. App. 54a. While declining to decide whether the Establishment Clause would force the University to deny funding for petitioners' magazine, the court found that the University's "fear" of violating the Establishment Clause was a sufficient justification for the Guideline:

[E]ven if the plaintiffs were correct in their assertion that funding *Wide Awake* would not violate Federal or State law, it is not the province of this court to second guess the legal judgments made by the University. So long as the University's Establishment Clause fears are reasonable, the Guideline restriction must stand. Given the complexity of the law in this regard, this court has little trouble in finding that the Guideline restriction is a reasonable limit to access to SAF funds. Further, the restriction is a reasonable

⁵ Those exceptions had to do with whether, in addition to denying funding, the University refused *Wide Awake* access to certain University facilities. The district court ruled against petitioners on this claim (Pet. App. 53a n.8), and they did not pursue it on appeal.

response by the University to prevent excessive entanglement with religion.

Ibid. The district court rejected petitioners' free exercise claim on the ground that it did not appear to the court that "any burden of constitutional magnitude" had been imposed on them, and that even if there were a burden on free exercise rights, it would be justified by the compelling state interest of avoiding violation of the Establishment Clause. *Id.* at 55a, 57a.⁶ The court rejected petitioners' equal protection claim on the ground that they had made no showing of discriminatory intent. *Id.* at 57a-58a.

E. Proceedings in the Court of Appeals

The Court of Appeals reversed the district court's holding that the Guideline against funding "religious activities" does not discriminate on the basis of the content and viewpoint of the publication, but it affirmed the judgment on the ground that the University has a compelling state interest in avoiding a violation of the Establishment Clause.

The Court of Appeals explained that in "forbidding funding for speech that meets the definition of 'religious activity,' but not for speech of other types, the SAF guidelines discriminate among speech on the basis of its content." Pet. App. 26a. This, the court held, is "presumptively unconstitutional." *Id.* at 39a. Although the government has no affirmative duty to subsidize exercise of a constitutional right, it may not "penalize exercise of constitutional rights by withholding from their possessors an otherwise discretionary benefit." *Id.* at 25a. The Guideline "constitutes precisely such a penalty, because it restrains *Wide Awake* Productions from gaining access altogether to a funding source generally available to CIOs not engaged in religious expression." *Ibid.* It "thus cre-

⁶ At this point in the opinion, the district court did not explain why it concluded that funding the magazine would violate the Establishment Clause. Earlier in the opinion, it had declined to decide that question. Compare Pet. App. 54a with *id.* at 57a.

ates an uneven playing field on which the advantage is tilted towards CIOs engaged in wholly secular modes of expression." *Id.* at 26a. "[A]bsent considerations of equal constitutional dignity," the Court of Appeals explained, the Guideline violates the constitutional principle that "when funds are made available to CIOs generally, they must be distributed in a viewpoint-neutral manner." *Id.* at 25a.

The court concluded, however, that the University's discrimination against religious speech is justified by its "compelling interest in maintaining strict separation of church and state," which is "derive[d]" from the Establishment Clause. Pet. App. 26a-27a, 39a. Applying the three-part test of *Lemon v. Kurtzman*, 403 U.S. 602, 612-13 (1971), the court held that inclusion of student publications within the program funded by the Student Activities Fund would violate the "effect" and "entanglement" prongs of the test. The court ruled that inclusion of "a publication so clearly engaged in the propagation of particular religious doctrines" would constitute a "patent Establishment Clause violation." Pet. App. 35a; see *id.* ("it would be difficult to view awarding SAF monies to *Wide Awake* as anything but state sponsorship—and therefore advancement—of religious belief").

Moreover, it was the "entanglement" part of the *Lemon* test that the court found to be "most plainly implicated by this case." Pet. App. 35a. The court acknowledged that state universities "may not discriminate against [religious groups] based on the content of their speech" when "university facilities" are involved, but opined that "[d]irect monetary subsidization of religious organizations and projects * * * is a beast of an entirely different color." *Id.* at 37a (emphasis in original). According to the court, "providing SAF monies to defray the publication costs of *Wide Awake* inevitably would advance *Wide Awake*'s Christian mission." *Ibid.* It would "send an unmistakably clear signal that the University of Virginia supports Christian values and wishes to promote the wide promulgation of such values." *Id.* at 38a. Moreover,

"[t]he possibility of a continuing annual appropriation for the benefit of a single religion carries the potential for seriously divisive political consequences at the University of Virginia," which the court stated is "a factor of recurring significance in the Supreme Court's jurisprudence surrounding *Lemon*'s 'excessive entanglement' prong." *Id.* at 37a.

In sum, the court of appeals held: (1) that the Speech and Press Clauses "presumptively" forbid discrimination against an otherwise eligible publication on the basis of its religious viewpoint, (2) that the Establishment Clause requires such discrimination, and—implicitly—(3) that the Establishment Clause trumps the Speech and Press Clauses. The court also affirmed the lower court's disposition of petitioners' free exercise and equal protection claims.

Petitioners filed a petition for rehearing with suggestion for rehearing in banc. The petition was denied on May 23, 1994, Judges Widener, Niemeyer, and Luttig dissenting.⁷

SUMMARY OF ARGUMENT

This case involves the discriminatory exclusion of an otherwise qualified student publication from eligibility for student activity funding at the University of Virginia, solely on the basis of the content, indeed the viewpoint, of the publication.

The University of Virginia uses its Student Activity Fund to support a wide variety of student speech from different perspectives, including some 15 newspapers and magazines. Petitioners have started a sixteenth: *Wide Awake*, a student magazine that addresses national and campus issues of a political, personal, cultural, and edu-

⁷ There is no suggestion of mootness. Even apart from petitioners' claim for damages, which obviously is not moot, *Wide Awake Productions* still exists, wishes to continue publishing, and seeks to participate in the Student Activities Fund.

cational nature from the point of view of its editors and members. They have satisfied all the necessary requirements for funding eligibility. The problem is their editorial point of view, which is rooted in their Christian religious faith. That (and that alone), according to the University, makes the magazine ineligible for funding. This raises the question: is the religious perspective of a student publication a lawful ground for excluding it from benefits otherwise available to organizations of its type?

We contend that the University's action violates the First and Fourteenth Amendments of the United States Constitution. Our argument is based on two important principles of constitutional law. First, discrimination on the basis of the content of speech, and especially its viewpoint, is presumptively unconstitutional and can be justified only on the basis of a compelling governmental purpose for the discrimination. *R.A.V. v. City of St. Paul*, 112 S. Ct. 2538, 2542-43, 2547-48, 2549-50 (1992). This principle applies to decisions involving benefits as well as regulation (*FCC v. League of Women Voters*, 468 U.S. 364 (1984); *Arkansas Writers' Project, Inc. v. Ragland*, 481 U.S. 221, 230 (1987)), and to religious as well as secular points of view (*Lamb's Chapel v. Center Moriches School Dist.*, 113 S. Ct. 2141 (1993); *Widmar v. Vincent*, 454 U.S. 263, 269-70 (1981)). Second, the nondiscriminatory funding of a broad range of publications and activities, without regard to their religious, anti-religious, or nonreligious point of view, does not violate the Establishment Clause. *Texas Monthly, Inc. v. Bullock*, 489 U.S. 1, 14-15 (1989); *Witters v. Washington Dep't of Services*, 474 U.S. 481 (1986).

ARGUMENT

I. THE SPEECH AND PRESS CLAUSES FORBID A PUBLIC UNIVERSITY FROM DENYING FUNDING TO AN OTHERWISE ELIGIBLE STUDENT PUBLICATION SOLELY BECAUSE OF ITS RELIGIOUS VIEWPOINT

Few propositions are more central to American constitutional law: in the absence of compelling justification, the government must not discriminate against or deny a benefit to a person because of the content of his speech. This Court has made clear that content-based discrimination against speech is "presumptively invalid" (*R.A.V. v. City of St. Paul*, 112 S. Ct. 2538, 2542 (1992)) and subject to "the most exacting scrutiny" (*Turner Broadcasting System, Inc. v. FCC*, 114 S. Ct. 2445, 2459 (1994)). "A statute is presumptively inconsistent with the First Amendment if it imposes a financial burden on speakers because of the content of their speech." *Simon & Schuster v. New York Crime Victims Bd.*, 112 S. Ct. 501, 508 (1991). The prohibition is particularly strong when the government's action "goes even beyond mere content discrimination, to actual viewpoint discrimination." *R.A.V.*, 112 S. Ct. at 2547. See *Boos v. Barry*, 485 U.S. 312, 319 (1988); *Schacht v. United States*, 398 U.S. 58 (1970). "The general principle * * * is that the First Amendment forbids the government to regulate speech in ways that favor some viewpoints or ideas at the expense of others." *City Council v. Taxpayers for Vincent*, 466 U.S. 789, 804 (1984).

In accordance with these principles, the lower courts have consistently held (and neither the Fourth Circuit nor the University disputes) that public universities may not deny funding to student groups or publications on the basis of their viewpoint. The leading case is *Gay & Lesbian Students Ass'n v. Gohn*, 850 F.2d 361 (8th Cir. 1988), in which the University of Arkansas refused to allow a student gay rights group to receive funds from the student activities fund. The Eighth Circuit (Arnold,

J.) stated the following constitutional principle, which we commend to this Court as equally applicable to this case:

[W]e hold that a public body that chooses to fund speech or expression must do so even-handedly, without discriminating among recipients on the basis of their ideology. The University need not supply funds to student organizations; but once having decided to do so, it is bound by the First Amendment to act without regard to the content of the ideas being expressed.

Id. at 362.

Similarly, in *Joyner v. Whiting*, 477 F.2d 456, 460 (4th Cir. 1973), the court held that public university officials may not use "the institution's power of the purse" to regulate the content of student publications. In that case, the university president cut off funding of a student newspaper because of its advocacy of black separatism, which he considered "abhorrent, contrary to the university's policy, and inconsistent with constitutional and statutory guarantees of equality." *Id.* at 462. The court described the president's action as "censorship" and held that it violated the First Amendment. "Censorship of constitutionally protected expression cannot be imposed," the Court said, by "withdrawing financial support" for a student publication or by any other means. *Id.* at 460.⁸ See also *Brooks v. Auburn Univ.*, 412 F.2d 1171 (5th Cir. 1969) (public university may not deny funding to an anti-war speaker on account of the controversial character of his views).⁹

⁸ This case presents a much clearer constitutional violation than did *Joyner*. In *Joyner*, the publication in question was the official school newspaper, which reasonably might be thought to bear the imprimatur of the University. Here, *Wide Awake* is only one of many publications, and obviously does not represent the views of the institution.

⁹ By the same token, courts have generally rejected the argument that funding of controversial speakers or activities out of mandatory student activities funds violates the First Amendment rights of dissenting students, so long as the fund supports a "broad

Under these precedents, if petitioners produced a magazine addressing such issues as homosexuality, racism, and international events—all subjects of major articles in the first three issues of *Wide Awake*—from a gay rights (*Gohn*), racist (*Joyner*), or antiwar (*Brooks*) point of view instead of their actual Christian perspective, the University unquestionably would be required to extend them neutral treatment. Petitioners' religious viewpoint is entitled to the same protection. We do not contend that the University must fund "religious activities" as such. But we do contend that a public university may not decline to fund a student activity that is otherwise qualified on the ground that it espouses a religious view.

The University's exclusion of "religious activities" is essentially identical to the defendant's exclusion of "religious purposes" in *Lamb's Chapel v. Center Moriches School Dist.*, 113 S. Ct. 2141 (1993). There, as here,

spectrum of university life and reasonable representation of the various aspects of student thought and action." *Larson v. Regents of Univ. of Nebraska*, 204 N.W.2d 568, 571 (Neb. 1973). Accord, e.g., *Kania v. Fordham*, 702 F.2d 475, 480 (4th Cir. 1983); *Galda v. Bloustein*, 686 F.2d 159, 166 (3d Cir. 1982); *Good v. Associated Students of Univ. of Wash.*, 542 P.2d 762 (Wash. 1975); *Lace v. University of Vermont*, 303 A.2d 475 (Vt. 1973); see generally Note, *A Funny Thing Happens When You Pay for a Forum: Mandatory Student Fees to Support Political Speech at Public Universities*, 103 Yale L.J. 2009 (1994).

One court has permitted dissenting students to demand refunds of portions of the student activities fee that are used to support the expression of ideological viewpoints with which they disagree. *Smith v. Regents of Univ. of Cal.*, 844 P.2d 500 (Cal.), cert. denied, 114 S. Ct. 181 (1993). Others have blocked mandatory fees for the use of a single ideological organization. E.g., *Galda v. Rutgers*, 772 F.2d 1060 (3d Cir. 1985), cert. denied, 475 U.S. 1065 (1986). Neither issue is raised in this case. The religious nature of some of the funded speech would not affect the disposition of the refund question, for the right to a refund, if it exists, applies to secular as well as religious viewpoints with which the student disagrees. See *Smith*, 844 P.2d at 513. In any event, the *Smith* court did not hold that ideological groups may be excluded from the SAF program, but only that dissenting students could demand a partial refund.

the government defendant extended a benefit (access to meeting space in a school) to a wide variety of social, civic, and recreational uses. Pursuant to a formal policy against use of the space for "religious purposes," the defendant excluded a group that wanted to show a film series addressing the subject of child rearing from a "Christian perspective." In a unanimous judgment, this Court held that "it discriminates on the basis of viewpoint to permit school property to be used for the presentation of all views about family issues and child-rearing except those dealing with the subject matter from a religious standpoint." *Id.* at 2147.

The same is true in this case. Wide Awake Productions satisfied all neutral, generally applicable criteria for funding eligibility as a "student news, information, opinion, entertainment, or academic communications media group[]" (Pet. App. 61a ¶ 4), just as the church group in *Lamb's Chapel* qualified as a "social" or "civic" organization. As in *Lamb's Chapel*, the government defendants have cited no reason for excluding *Wide Awake* other than its religious perspective. As held in *Lamb's Chapel*, that is viewpoint discrimination.

At various points in this litigation, the University has denied that its exclusion of "religious" publications constitutes viewpoint discrimination, apparently in the belief that "religion" is a separate and distinct subject matter rather than a "perspective" or "standpoint" (*Lamb's Chapel*, 113 S. Ct. at 2147) that can be brought to bear on any number of issues. This evinces a serious misunderstanding of the nature of religion.¹⁰ Christianity (like other religions) is a comprehensive worldview that offers

¹⁰ In any event, the University concedes in its Answer (J.A. 21-22 ¶ 16) that SAF-funded magazines are permitted to address the subject of religion—so long as they do so from a "secular" and not a "pervasively sectarian perspective." Thus, even if the Guideline against "religious activities" could be viewed as a subject-matter restriction, it is evident that the University discriminates on the basis of viewpoint within this subject category.

a way of thinking about everything from the nature of ultimate reality, to the way human beings ought to treat one another, to the character and quality of the culture. It competes in the marketplace of ideas with scores of secular philosophies, ideologies, and worldviews, as well as with other religions. To exclude a magazine which explains and advocates this worldview and applies it to issues such as racism, crisis pregnancy, eating disorders, market economics, music, education, and the fall of the Soviet Union, solely because the perspective is "religious," is plainly discrimination on the basis of viewpoint.

Moreover, the administration of the Guidelines demonstrates that the University is engaged in systematic discrimination not just between religious and nonreligious viewpoints, but among the various religious viewpoints represented at the University of Virginia. *Wide Awake* magazine is excluded because it "promotes" Christianity at the University of Virginia, but the Muslim Students Association receives SAF money to "promote a better understanding of Islam to the University Community" (J.A. 92) through its magazine, *Al-Salam*. *Wide Awake* magazine is excluded because it is a "religious activity," but the Jewish Law Students Association receives funds to "be a focal point for Jewish activities" and to "encourage law students to participate in Jewish activities." J.A. 97.¹¹

The University stoutly insists that the Muslim and Jewish student groups are funded as "cultural—and not religious activities." J.A. 21. In a formal sense, this response is a *non sequitur*. None of these groups seeks funding as a "religious organization": the Muslim and Jewish groups are funded as "cultural organizations" and

¹¹ Petitioners have absolutely no objection to the funding of these other organizations; we are delighted that they are permitted to participate and believe that they enrich the life of the University community. But we believe that the funding of these organizations confirms that the Guideline against "religious activities" is inherently arbitrary.

Wide Awake would be funded as a "news, opinion, entertainment, or academic communications media group[]." The question is why the religious content of *Wide Awake* is deemed disqualifying while that of the Muslim and Jewish groups is not.

The University's answer seems to be that *Wide Awake* is more religious while the other groups are more cultural. This just illustrates the hopeless quagmire of viewpoint discrimination into which the University plunges itself by attempting to selectively silence religious voices. The line between "culture" and "religion" is highly subjective, if it exists at all. Who is to say that *Wide Awake* does not contribute to the cultural diversity of the University of Virginia campus?

It is not coincidental that in *Lamb's Chapel*, as in this case, the government's supposedly strict rule against "religious" uses admitted some seemingly religious groups (including the Salvation Army Youth Band, the Hampton Valley Council of Churches, and a New Age religious group, see 113 S. Ct. at 2146 n.5) while excluding others. It is probably inevitable that some religious groups will look more "cultural" or "civic" and others will look more "religious"—depending on the familiarity of the group and the biases of the government decisionmakers.¹² The

¹² The possibility of arbitrariness and prejudice in the University's system is illustrated by a recent interview with the chair of the Appropriations Committee of the Student Council—the body that is charged, in the first instance, with distinguishing between "cultural" and "religious" activities at the University of Virginia:

Tanisha Sullivan, a third-year student who heads the committee that decides which student groups will get university funds, admitted in an interview that evangelical Christians are viewed warily by many students here.

"It raises an eyebrow, and you look at it a little more closely just because it's Christianity," she said. "Everyone is so on edge when it comes to Christianity."

The Muslim students' magazine "is teaching the culture of Islam," Sullivan said. That's a politically correct value in

Court in *Lamb's Chapel* accordingly chose not to rest its decision on the defendant's discrimination among religions (113 S. Ct. at 2147), but struck down the entire prohibition on "religious purposes." The real problem is not that the University has been sloppy or unfair in its distinctions between "religious" and "cultural" speech, but that it has no business drawing such viewpoint-laden lines in the first place.

It bears emphasis that the issues in this case fall within the very core of First Amendment protection. Petitioners' activity—the publication of a journal of opinion—is purely expressive, indistinguishable (except for editorial viewpoint) from that of newspapers and magazines anywhere. The controversy arises in a public university, which this Court has recognized as "peculiarly the 'marketplace of ideas.'" *Widmar v. Vincent*, 454 U.S. 263, 267 n.5 (1981); *Keyishian v. Board of Regents*, 385 U.S. 589, 603 (1967). This Court has warned in the past that public universities should avoid regulation of student publications in ways that turn on the "content of the newspaper rather than the time, place, or manner of its distribution." *Papish v. Board of Curators of Univ. of Missouri*, 410 U.S. 667, 670 (1973) (emphasis in original). And the discrimination here is based not merely on content but on viewpoint—the most suspect of all bases of classification. *Lamb's Chapel*, 113 S. Ct. at 2147; *R.A.V.*, 112 S. Ct. at 2547.

The free speech and press holding of the Fourth Circuit is therefore unquestionably correct. Here, as in *Lamb's*

these days of multiculturalism. But Christianity is viewed differently, she said.

"People don't consider Christianity to be part of a culture. . . . My generation is taking a turn away from Christianity and trying to explore other things, trying to break away from the norm. When you have people like the Bakers [sic] and Jerry Falwell, my generation sees Christianity as money-grubbing, sort of a farce."

James Gannon, "Christian magazine denied university funds," *Denver Post*, Nov. 8, 1994, at 5F.

Chapel, the categorical exclusion of otherwise permissible uses on the ground that they constitute "religious purposes" or "religious activities" is "plainly invalid" under the principle that "the First Amendment forbids the government to regulate speech in ways that favor some viewpoints or ideas at the expense of others." 113 S. Ct. at 2147-48 (quoting *Taxpayers for Vincent*, 466 U.S. at 804).

II. THE ESTABLISHMENT CLAUSE DOES NOT BAR RELIGIOUS SPEAKERS AND PUBLICATIONS FROM PARTICIPATING IN PUBLIC BENEFITS ON AN EQUAL AND NONDISCRIMINATORY BASIS

A. The Fourth Circuit's Interpretation Of The Establishment Clause Creates An Unnecessary And Illogical Conflict Among The Clauses Of The First Amendment

Having correctly held that the University's discrimination against "religious activities" violates the Speech and Press Clauses, the Fourth Circuit went on to conclude that this discrimination is compelled by the Establishment Clause. Pet. App. 26a-38a, 39a. "[I]t would be difficult," the court stated, "to view awarding SAF monies to *Wide Awake* as anything but state sponsorship—and therefore advancement—of religious belief." *Id.* at 35a. "Because the First Amendment forbids government to promulgate policies 'respecting an establishment of religion,'" the court continued, "government is left no choice but to fore-swear financial support of the myriad forms of religious endeavor in which a student organization might engage." *Id.* at 38a.

In other words, one provision of the First Amendment requires neutrality, while the other requires exclusion. The court was forced to choose, and it chose exclusion.

Not only does the decision below create a conflict between the Establishment Clause and the Speech and Press Clauses—as the Fourth Circuit candidly acknowledged—

but it creates a conflict with the Free Exercise Clause as well.¹³ "At a minimum," this Court has stated, "the protections of the Free Exercise Clause pertain if the law at issue discriminates against some or all religious beliefs." *Church of Lukumi Babalu Aye v. City of Hialeah*, 113 S. Ct. 2217, 2226 (1993). See also *Employment Division v. Smith*, 494 U.S. 872, 877 (1990) (under the Free Exercise Clause, the government may not "impose special disabilities on the basis of religious views or religious status"); *Jimmy Swaggart Ministries v. Board of Equalization*, 493 U.S. 378, 390 (1990) (to "single out" religious activity "for special or burdensome treatment" would violate the Free Exercise Clause); *Hobbie v. Unemployment Appeals Comm'n*, 480 U.S. 136, 148 (1987) (Stevens, J., concurring) (quoted in *Lukumi*, 113 S. Ct. at 2232) ("The Free Exercise Clause 'protect[s] religious observers against unequal treatment.'"). A rule that excludes an otherwise eligible publication from access to neutral and generally available benefits, solely on account of religious beliefs, violates this principle.¹⁴

¹³ The Court of Appeals declined to reach the merits of petitioners' free exercise claim, stating that it had been abandoned. Pet. App. 16a n.23. This holding was erroneous. The free exercise issue was raised in the Complaint (J.A. 13-14), addressed by the district court (Pet. App. 55a-57a), and preserved by petitioners on appeal. C.A. Br. Pltffs at 18 n.3.

¹⁴ Similar protection is provided by the Equal Protection Clause—which forbids the government to discriminate among speakers on the basis of the content of their speech. *Carey v. Brown*, 447 U.S. 455, 561-62 (1980). The Court of Appeals rejected petitioners' equal protection claim on the ground that petitioners did not allege discriminatory intent. Pet. App. 41a. However, since the students' claim is based on unequal treatment pursuant to an expressly discriminatory classification (not on the differential impact of a facially neutral classification), there is no requirement of a separate allegation regarding the defendants' intent. See *Washington v. Davis*, 426 U.S. 229, 240-41 (1976) (requiring proof of discriminatory intent only in the context of a facially nondiscriminatory governmental policy). If this Court affirms the lower court's Speech and Press Clause holdings, and reverses its Establishment Clause holding, it will not be necessary to address peti-

The decision below thus puts the Establishment Clause on a collision course with the rest of the First Amendment. It strips religious speakers of the constitutional protection accorded to secular perspectives and points of view. It condones discrimination against—not neutrality toward—religion, in violation of the Free Exercise Clause. This is a highly implausible reading of the First Amendment, taken as a whole.

It would be odd, indeed, if the various clauses of the First Amendment were so inconsistent that enforcement of one required violation of another. Surely, before reaching such a conclusion, the court below should have carefully considered alternative interpretations that would obviate this ostensible conflict. Otherwise, the court has no nonarbitrary ground for preferring one constitutional liberty over the others. While the court below simply assumed that the Establishment Clause should take precedence over the Speech and Press Clauses, it would have been equally logical (or illogical) to conclude that compliance with the Free Speech Clause negates any suggestion of a purpose or effect to establish religion.¹⁵

There is no support in Supreme Court precedent for the existence of such a fundamental conflict between the Speech Clause and the Establishment Clause. In at least three cases, government defendants have invoked the Establishment Clause as a justification for refusing to extend free speech rights to religious speakers, making arguments virtually identical to those made by the University in this case. See *Widmar v. Vincent*, 454 U.S. 263 (1981); *Board of Education v. Mergens*, 496 U.S. 226 (1990); *Lamb's Chapel*, 113 S. Ct. 2141. But in each of those

tioners' free exercise and equal protection claims separately. In petitioners' view, each of the relevant constitutional provisions requires the same outcome: the neutral treatment of religious speech.

¹⁵ Cf. Laurence Tribe, *American Constitutional Law* § 14-8, at 1201 (2d ed. 1988) (in case of conflict, "the free exercise principle should be dominant [over] the anti-establishment principle").

cases, this Court reconciled the competing constitutional claims without subordinating the free speech claim, concluding that a policy of neutrality created no serious danger of an Establishment Clause violation. *Widmar*, 454 U.S. at 270-75; *Mergens*, 496 U.S. at 247-53; *Lamb's Chapel*, 113 S. Ct. at 2148. We believe those cases establish a general principle, which compels reversal of the judgment below.

As shown by these cases, the proper analysis does not give precedence to one constitutional right over another, but delineates the appropriate scope of each. The "crucial difference," this Court has explained, is "between government speech endorsing religion, which the Establishment Clause forbids, and private speech endorsing religion, which the Free Speech and Free Exercise Clauses protect." *Mergens*, 496 U.S. at 250 (emphasis in original); see *Widmar*, 454 U.S. at 271 n.9. The Establishment Clause limits the power of the government, not the freedom of citizens. As Professor Douglas Laycock has expressed the point: "The government must be neutral both in its own speech and in its treatment of private speech. It may not take a position on questions of religion in its own speech, and it must treat religious speech by private speakers exactly like secular speech by private speakers." Laycock, *Equal Access and Moments of Silence: The Equal Status of Religious Speech By Private Speakers*, 81 Nw. U. L. Rev. 1, 3 (1986).

This distinction tracks the line between speech by government agents and officials, which is subject to substantial government control, and speech by private persons, where government control is far more circumscribed. See *Waters v. Churchill*, 114 S. Ct. 1878, 1886-88 (1994). Where the government exercises control over the content of speech, it follows that the messages conveyed are properly attributable to the government and thus subject to Establishment Clause strictures on government speech. But by the same token, where the government exercises no control over speech content, then the speech is attributable

to the private speaker and the Establishment Clause is not implicated.

This Court has held repeatedly that the mere receipt of government funds does not convert a private decision into state action. *Rendell-Baker v. Kohn*, 457 U.S. 830, 840-41 (1982); *Blum v. Yaretsky*, 457 U.S. 991 (1982); *Folk County v. Dodson*, 454 U.S. 312 (1981). Rather, the inquiry focuses on the government's involvement in the decision itself—here, the editors' decision about the content of the magazine—to determine whether that decision has been made or significantly influenced by the government. As the Court explained in *Rendell-Baker*, "a State normally can be held responsible for a private decision only when it has exercised coercive power or has provided such significant encouragement, either overt or covert, that the choice must in law be deemed to be that of the State." 457 U.S. at 840 (quoting *Blum*, 457 U.S. at 1004).¹⁶

Not surprisingly, these "state action" precedents point to almost exactly the same considerations that the Court has invoked to distinguish between religious expression in school settings that is attributable to the state and thus an establishment of religion, and religious expression that is privately initiated and thus permitted on a neutral basis. In *Lee v. Weisman*, 112 S. Ct. 2649 (1992), for example, the Court stressed the fact that "[a] school official, the principal, decided that an invocation and a benediction should be given" and noted that "this is a choice attributable to the State." *Id.* at 2655; see also *Stone v. Graham*, 449 U.S. 39 (1980) (per curiam) (striking down state law requiring posting of the Ten Commandments). By contrast, the prayers and other religious speech in *Widmar* and *Mergens* were student-initiated and, the Court stressed, neither encouraged nor endorsed by the state. See

¹⁶ *Rendell-Baker* is particularly pertinent, because it involved the claim that the actions of a private party violated the First Amendment on account of the fact that the party's activity was state funded. Essentially the same question is presented here.

Mergens, 496 U.S. at 250-51 (distinguishing between "State-initiated, school sponsored, or teacher-led religious speech on the one hand and student-initiated, student-led religious speech on the other") (citation omitted); *Widmar*, 454 U.S. at 271 n.9 (noting that the Establishment Clause applies to "speech, undertaken or approved by the State").

In this case, no one could suggest that the University is responsible in any way for petitioners' decisions about the content of their magazine. See *Kania v. Fordham*, 702 F.2d 475, 476 (4th Cir. 1983) (public university "exercises no control whatsoever" over the content of a student publication even though it is funded by the mandatory student activities fee). The University's stated policy with respect to all recognized student groups ("CIO"s) is set forth in the standard "Agreement for a Contracted Independent Organization," as follows:

The University is a Virginia public corporation and the CIO is not part of that corporation, but rather exists and operates independently of the University. The CIO is not an agent, servant or employee of the University, but rather is an independent contractor which manages its own affairs.

The parties understand and agree that this Agreement is the only source of any control the University may have over the CIO or its activities, except to the extent, if any, the University chooses to exercise control over activities occurring on its property, or over matters covered by the University's honor or judiciary systems.

J.A. 27. By providing assistance to a broad range of student publications and activities, without preference based on ideology, the University neither encourages any particular viewpoint nor becomes identified with it. Indeed, the University expressly disavows any approval of *Wide Awake's* goals or activities, as it does those of all other CIOs at the University. J.A. 26, 28. As in *Rendell-Baker*, the decisions of the private individuals involved

are "not compelled or even influenced by any state regulation." 457 U.S. at 841.

Of course, in some contexts the activities of recipients of government funding are "fairly attributable to the State." *Rendell-Baker*, 457 U.S. at 838 (quoting *Lugar v. Edmonson Oil Co.*, 457 U.S. 922, 937 (1982)). Thus, to cite an easy case, the decision of a public school teacher to lead his class in prayer is state action, and is barred by the Establishment Clause. And when the government enlists private organizations as grantees to convey the government's own messages to the public about matters such as family planning or adolescent sexual self-discipline, the grantees' speech is properly attributable to the government. See *Rust v. Sullivan*, 500 U.S. 173 (1991); *Bowen v. Kendrick*, 487 U.S. 589 (1988). Because of their status as conduits for government messages, grantees under such programs are subject to reasonable government restrictions on their own speech (*Rust*), and the government is under an obligation to ensure that the grantees do not teach or promote religion (*Kendrick*). That does not mean, however, that recipients of general subsidies for speech activities, where the government is supporting a diversity of expression and not attempting to communicate its own message, are stripped of free speech rights or subject to Establishment Clause limits. *FCC v. League of Women Voters*, 468 U.S. 364 (1984); *Arkansas Writers' Project v. Ragland*, 481 U.S. 221 (1987); *Walz v. Tax Comm'n*, 397 U.S. 664 (1970).

In this era of pervasive government, the notion that any speech that occurs on public property or that benefits from government action is thereby "attributable to the State" is frightening in its implications. As government action increases in scope, the place for religious speech would shrink and shrink. The growing government would become a relentless engine of secularization. As government becomes involved in more and more formerly private areas of life (child care, voluntary charitable work, elder care, health choices, the arts) it is increasingly apparent that the only principle consistent with preservation

of religious pluralism is one of neutrality and accommodation. As this Court noted in *Lee v. Weisman*, 112 S. Ct. at 2661, a "relentless and all-pervasive attempt to exclude religion from every aspect of public life could itself become inconsistent with the Constitution."

Thus, contrary to the Fourth Circuit, the principles of free speech and nonestablishment are entirely compatible. There is no need to decide which constitutional liberty should be given preference. The task of courts in both contexts is to determine where private rights end and government control begins. Where the speech of private persons is involved, the government must remain scrupulously neutral among competing viewpoints, both secular and religious. Where government-controlled speech is involved, the government must avoid sponsorship, favoritism, or direct association with religion.

When the Fourth Circuit concluded that the Student Activities Fund is within the realm of freedom of speech, where the government is forbidden to discriminate on the basis of the content and viewpoint of the speech, that conclusion did not create a conflict with the Establishment Clause: it answered the Establishment Clause question. If the speech at issue is that of a private speaker exercising free speech rights, then it is not "government speech" and is outside the purview of the Establishment Clause.

B. The Fourth Circuit's Interpretation Of The Establishment Clause Conflicts With This Court's Precedents

Even viewed on its own terms, independently of the Speech, Press, and Free Exercise Clauses, the Establishment Clause is not offended by participation of a religiously oriented student group in a student activities fund. This Court has held in case after case in the last decade that the Establishment Clause is *not* offended when benefits are extended evenhandedly, under neutral criteria, to a broad and diverse range of viewpoints and activities.

As Justice Brennan stated in *Texas Monthly, Inc. v. Bullock*, 489 U.S. 1, 14-15 (1989), "[i]nsofar as [a] subsidy is conferred upon a wide array of nonsectarian groups as well as religious organizations in pursuit of some legitimate secular end, the fact that religious groups benefit incidentally does not deprive the subsidy of the secular purpose and primary effect mandated by the Establishment Clause." In *Witters v. Department of Services*, 474 U.S. 481 (1986), the Court held that aid does not violate the Establishment Clause if it is "'made available generally without regard to the sectarian-nonsectarian, or public-nonpublic nature of the institution benefitted,' and is in no way skewed toward religion." *Id.* at 487-88 (quoting *Committee for Public Education & Religious Liberty v. Nyquist*, 413 U.S. 756, 782-83 n.38 (1973)). See also *Board of Education of Kiryas Joel v. Grumet*, 114 S. Ct. 2481, 2491 (1994) ("we have frequently relied explicitly on the general availability of any benefit provided religious groups or individuals in turning aside Establishment Clause challenges"); *Zobrest v. Catalina Foothills School Dist.*, 113 S. Ct. 2462, 2466 (1993) ("we have consistently held that government programs that neutrally provide benefits to a broad class of citizens defined without reference to religion are not readily subject to an Establishment Clause challenge"); *Lee v. Weisman*, 112 S. Ct. at 2678 n.8 (Souter, J., concurring) (the Establishment Clause is not violated when "the State has, without singling out religious groups or individuals, extended benefits to them as members of a broad class of beneficiaries defined by clearly secular criteria"); *Lamb's Chapel*, 113 S. Ct. at 2148; *Mergens*, 496 U.S. 226; *Mueller v. Allen*, 463 U.S. 388 (1983); *Widmar*, 454 U.S. 263. See generally Douglas Laycock, *Formal, Substantive, and Disaggregated Neutrality Toward Religion*, 39 DePaul L. Rev. 993 (1990).

Although the most emphatic opinions stressing the overriding importance of neutrality have been relatively recent, the principle is not new. It was clearly enunciated by the

second Justice Harlan in his concurring opinion in *Walz v. Tax Commission*, 397 U.S. 664, 697 (1970):

As long as the breadth of [the benefit] includes groups that pursue cultural, moral, or spiritual improvement in multifarious secular ways, including, I would suppose, groups whose avowed tenets may be antitheological, theistic, or agnostic, I can see no lack of neutrality in extending the benefit * * * to organized religious groups.

Indeed, in the first of this Court's modern Establishment Clause cases, Justice Black warned that "we must be careful, in protecting the citizens * * * against state-established churches, to be sure that we do not inadvertently prohibit [the State] from extending its general state law benefits to all its citizens without regard to their religious belief." *Everson v. Board of Education*, 330 U.S. 1, 16 (1947).

The Fourth Circuit's opinion cannot be reconciled with these precedents. SAF funds are distributed to some 118 different student groups, including 15 newspapers and magazines, representing a broad and diverse array of opinions and interests. Cf. *Widmar v. Vincent*, 454 U.S. at 274. The criteria for eligibility are "in no way skewed towards religion" (*Witters*, 474 U.S. at 488). Once the restriction on "religious activities" is removed, the program will be perfectly neutral. Under *Texas Monthly*, *Zobrest*, *Witters*, *Widmar*, and *Mueller*, that is the end of the matter. The time has come for this Court to make clear: the Establishment Clause does not require, and must not be used to justify, discrimination against any person or group on the basis of the religious character of their speech, ideas, or motivation. See *Kiryas Joel*, 114 S. Ct. at 2498 (O'Connor, J., concurring) ("The Religion Clauses prohibit the government from favoring religion, but they provide no warrant for discriminating *against* religion. * * * The Establishment Clause does not demand hostility to religion, religious ideas, religious people, or religious schools.").

Exclusion of *Wide Awake* from the student activities fund serves no genuine purpose or value of the Establish-

ment Clause. On the contrary, each of the traditional concerns of the Establishment Clause is better advanced by reversing the University's viewpoint-discriminatory policy. Thus, we next address the traditional concerns underlying the Establishment Clause—not as separate Establishment Clause “tests” but rather as reasons supporting the holding of the cases above: that the distribution of benefits to a broad array of recipients, without regard to religion, does not offend the Establishment Clause.

Secular purpose and effect. The first two prongs of the *Lemon* test require that government action have a purpose and primary effect that is secular and does not advance religion. 403 U.S. at 612-13.¹⁷ If the decision below is reversed and the University is required to administer the student activities fund without discrimination against religious points of view, these requirements will be satisfied. The purpose and effect of the CIO program at the University of Virginia is to “enhance the University environment” by supporting “a wide range of opportunities for its students.” J.A. 26. This is essentially the same as that of the open forum policy in *Widmar*, 454 U.S. at 271 & n.10. By funding some 118 student organizations of different and conflicting viewpoints, the University advances not “religion” but the ability of students to speak their own minds and to hear a diverse range of views.

In our opinion, the Fourth Circuit's error stems from an ambiguity in the expression: “primary effect that * * * advances * * * religion.” *Lemon*, 403 U.S. at 612. The court seemed to think that religion is “advanced” within the meaning of the *Lemon* test whenever a group “clearly engaged in the propagation of particular religious

¹⁷ We recognize that a majority of the Justices of this Court have expressed doubts about the continued utility of the *Lemon* test and have therefore not confined our analysis of the Establishment Clause issue to that framework. See *Kiryas Joel*, 114 S. Ct. at 2498-99 (O'Connor, J., concurring).

doctrines” (Pet. App. 35a) is a beneficiary of government action. But as the “neutral benefits” cases demonstrate, that is not the constitutional principle. If it were, religious groups would have to be quarantined from all public benefits, no matter what their form. Rather, the analysis ought to focus on whether religious individuals or groups have been given *preferential treatment*. If religious activities simply share in the benefits of government action on a neutral basis, along with other activities, the Establishment Clause is not offended. In view of the widespread confusion among governmental bodies and lower courts on this point (see cases cited in the Petition, at 18-19 nn. 10 & 11), petitioners believe that the “effects” prong of *Lemon* should be replaced with a simple statement that the government may not accord religious institutions, speech, or activities preferential treatment, unless special treatment can be justified as a means of accommodating the free exercise of religion.¹⁸

Coercion or inducement of religion. One of the core purposes of the Establishment Clause is to protect religious liberty by ensuring that government power is not used to coerce or induce religious practice or belief. See *County of Allegheny v. ACLU*, 492 U.S. 573, 659-63 (1989) (Kennedy, J., concurring in part); *Lee v. Weisman*, 112 S. Ct. 2649 (1992). The allocation of resources is an important element of governmental power, and must not be employed in such a way as to favor religious, nonreligious, or antireligious viewpoints over the alternatives. *Everson*, 330 U.S. at 15; *Lee v. Weisman*, 112 S. Ct. at 2667 (Souter, J., concurring). The ideal is for government action to have as little impact on relig-

¹⁸ Because this case does not involve the special treatment of religion, there is no need to examine the constitutional standards for permissible accommodation of religion. Recent discussions of those standards appear in *Texas Monthly; Corporation of Presiding Bishop v. Amos*, 483 U.S. 327, 337 (1987); *Kiryas Joel*, 114 S. Ct. at 2501-03 (Kennedy, J., concurring); *id.* at 2512-13 (Scalia, J., dissenting); *Lee v. Weisman*, 112 S. Ct. at 2676-78 (Souter, J., concurring).

ious life as is possible. See Gail Merel, *The Protection of Individual Choice: A Consistent Understanding of Religion Under the First Amendment*, 45 U. Chi. L. Rev. 805 (1978).

The only way to ensure that government funding does not distort the marketplace of ideas is to distribute the funds neutrally, without discrimination based on viewpoint. Then all student groups, whatever their philosophical orientation, will be free to act in accordance with their own conscience and convictions. They will not be tempted to trim their sails or compromise their position to win access to funding. As this Court recognized in *Witters*, a program that provides no "greater or broader benefits" to religious than to nonreligious activities "creates no financial incentive for students" to alter their preferences, whether in a religious or a nonreligious direction. 474 U.S. at 488. All students pay into the student activities fund at an equal rate, and it is only fair that they should be equally eligible to share in its benefits, without favoritism or discrimination based on religion.

On the other hand, as the Fourth Circuit recognized in the Speech and Press Clauses portion of its opinion, the discriminatory exclusion of "religious activities" *does* have the effect of skewing the marketplace of ideas at the University of Virginia: the Guideline "creates an uneven playing field on which the advantage is tilted towards * * * wholly secular modes of expression." Pet. App. 26a. The University Guideline obviously creates an incentive for religious students, if they hope to get funding for a publishing venture to hide or suppress their actual opinions. A clearer example of a "chilling effect" on free speech is difficult to imagine.

Endorsement. The purpose of the endorsement principle is to "preclude government from conveying or attempting to convey a message that religion or a particular religious belief is *avored* or *preferred*." *Wallace v. Jaffree*, 472 U.S. 38, 70 (1985) (O'Connor, J., concurring)

(emphasis added). Contrary to the decision below (Pet. App. 37a-38a), the neutral provision of benefits to a broad array of student groups and activities negates any possible appearance of endorsement. *Widmar*, 454 U.S. at 274; *Mergens*, 496 U.S. at 252; see also *Lamb's Chapel*, 113 S. Ct. at 2148; *Witters*, 474 U.S. at 488-89. Benefits programs that are objectively neutral toward religion could not "reasonably" be perceived as an endorsement.

No informed observer of the University of Virginia student activities program could infer that the University "endorses" all of the many conflicting views that are represented there. As the University itself insists in its CIO agreement with student groups, the "benefits" received by a group "should not be *misinterpreted* as meaning that * * * the University approves of the organization's goals or activities." J.A. 26 (emphasis added). The University requires that each such group include in all of its written materials (which would include each issue of *Wide Awake*) a disclaimer of University responsibility for the acts and omissions of the group. *Id.* at 28. If the University desires (or the Constitution requires) a more comprehensive disclaimer, petitioners would be happy to oblige them.

Indeed, it is the *exclusion* of a group, based on its religious viewpoint, that realistically presents a constitutional problem. Official disapproval of religion is no less a constitutional issue than endorsement, for both send a message that some citizens, based on their religious viewpoint, "are outsiders, not full members of the political community." *Lynch v. Donnelly*, 465 U.S. 668, 688 (1984) (O'Connor, J., concurring). Religious students at the University of Virginia cannot help but wonder why their point of view, alone among the various ideologies, philosophies, and worldviews of the student body, suffers this state-imposed disability. See *County of Allegheny*, 492 U.S. at 663-65 (Kennedy, J., concurring in part)

("enforced recognition of only the secular * * * would signal not neutrality but a pervasive intent to insulate government from all things religious"); see also *Mergens*, 496 U.S. at 248. Policies like the University Guideline contribute mightily to the impression that religious perspectives are somehow inappropriate, irrelevant, or disfavored in American public life. See generally Stephen Carter, *The Culture of Disbelief* (1993); Richard J. Neuhaus, *The Naked Public Square* (1984).

Historical argument against funding of religion. One of the central events leading up to adoption of the Religion Clauses of the First Amendment was the so-called "Assessment Controversy" in Virginia in 1784-85. Alarmed by the decline of religion and public virtue in the state in the aftermath of the Revolution, legislators proposed a tax "for the support of Christian teachers." This proposal inspired James Madison to write his famous argument, *Memorial and Remonstrance Against Religious Assessments*, which (along with other arguments) provoked great public opposition to the proposal and eventually led to its defeat.¹⁹

The lesson sometimes extracted from this episode is that tax money may not be used for religious purposes. See *Everson*, 330 U.S. at 16 ("[n]o tax in any amount, large or small, can be levied to support any religious activities or institutions"); *Walz*, 397 U.S. at 700-27 (Douglas, J., dissenting). But that reflects a misunderstanding of the context of the debate and the arguments Madison

¹⁹ Both the Bill and Madison's *Remonstrance* were reprinted as an appendix to Justice Rutledge's dissenting opinion in *Everson*, 330 U.S. at 63-74, and we will cite to that source. For additional historical background, see Thomas J. Curry, *The First Freedom: Church and State in America to the Passage of the First Amendment* 134-48 (1986); A. Adams & C. Emmerich, *A Nation Dedicated to Religious Liberty* 8-20 (1990). For an analysis specifically directed to questions of neutrality in funding, see Michael Paulsen, *Religion, Equality, and the Constitution: An Equal Protection Approach to Establishment Clause Adjudication*, 61 Notre Dame L. Rev. 311, 326-27, 334-35 & n.110 (1986).

marshalled against the tax. The point that is overlooked is that the Virginia proposal was a tax imposed for the sole purpose of fostering religion. The reason this was objectionable is not that it provided "aid" to "religion" but that the aid it provided was *not* neutral, in either purpose or effect. In Madison's words, the proposal "violates that equality which ought to be the basis of every law." *Memorial and Remonstrance* ¶ 4, quoted in 330 U.S. at 66 (emphasis added).

The lesson of the Assessment controversy cannot be stretched to cover a general public benefits program, conducted for a secular purpose, under which citizens receive funding for a variety of activities on a neutral basis unrelated to their religious message, and certainly does not imply that religious groups should suffer any special disability or discrimination. Indeed, any favoritism—for or against religion—"degrades from the equal rank of Citizens all those whose opinions in Religion do not bend to those of the Legislative authority." *Id.* ¶ 9, quoted in 330 U.S. at 69.

While one might challenge the legitimacy of the entire mandatory Student Activities Fund on the ground that it requires students to furnish contributions for the propagation of opinions they disbelieve (it requires liberals to subsidize the Federalist Society, traditionalists to support feminist groups, and meat eaters to support animal rights), courts have uniformly upheld such programs on the ground that they have a legitimate educational purpose and are used to support a wide diversity of views. See, e.g., *Kania v. Fordham*, 702 F.2d 475, 480 (4th Cir. 1983) (while mandatory student fees are impermissible if they "enhance[] the power of one, and only one, ideological group," they are legitimate when they "increase[] the overall exchange of information, ideas, and opinions on the campus"); Note, 103 Yale L.J., *supra*, at 2019 ("[w]hen a general fund is made available so that students of differing viewpoints can express themselves to their fellow students, fee-paying students are not

being compelled to fund the dissemination of one viewpoint with which they disagree"); accord cases cited in note 9, *supra*.

This explanation does not lose its persuasiveness when religious views are among the mix. The SAF program no more violates the principle against compelled support for speech than does the University of Virginia library (which uses tuition and tax proceeds to purchase books of every shade of opinion, including religious books), the United States Postal Service (which extends postal subsidies to a broad range of non-profit organizations, including religious ones), or the National Endowment for the Arts (which presumably supports religious art, as well as art that many people consider antireligious or profane).

Entanglement. Finally, for agencies of the government to extend benefits neutrally to all, without regard to religion, eliminates any need for the "entanglement" that can arise when government scrutinizes student conduct and attempts to determine which activities are "religious." The Guideline against funding religious activities *creates* entanglement; it does not diminish it. As the Court noted in *Widmar*, "the University would risk greater 'entanglement' by attempting to enforce its exclusion of 'religious worship' and 'religious speech.'" 454 U.S. at 272 n.11; accord *Mergens*, 496 U.S. at 253.

Under the present Guidelines, University officials are forced to examine each issue of *Wide Awake* and to monitor activities of each student group to make sure they are not too "religious." This is far from a mechanical determination. In the University's estimation, some seemingly religious groups are more "cultural" than "religious." See pages 5-6, 19-21, *supra*. We wonder how such judgments are made. We know University officials read copies of *Wide Awake*. Does the University send a monitor to the Jewish group's gatherings to make sure that they do not speak of the Torah? Or to the Muslim group's public lecture on "Western Misconceptions About

Islam" to make sure that the "misconceptions" are not theological in nature? Does it check the C.S. Lewis Society's reading list to make sure it is not top-heavy with apologetic or exegetical works? Such meddlesome scrutiny threatens the Establishment Clause ideal of governmental impartiality and noninterference.

We submit, therefore, that the neutrality principle of this Court's recent cases fully achieves the purposes of the Establishment Clause and requires reversal of the decision below.

C. Contrary Precedent Should Be Distinguished Or Overruled

In all candor, this Court's precedents regarding the participation of religious individuals or groups in neutral government benefits have not been consistent. Although the Court's early "aid" cases—*Bradfield*, *Everson*, *Allen*, and *Walz*—were resolved in favor of the neutral extension of benefits, this Court's decision in *Lemon v. Kurtzman*, 403 U.S. 602 (1971), inaugurated a period in which the constitutionality of aid was seen to depend not on the neutrality of the government's own allocation of benefits, but on the character of the recipient and the use to which the benefits were put. Thus, whenever government aid went to a "pervasively sectarian" institution or was used for a "specifically religious activity," it was deemed to be a violation of the Establishment Clause. *Hunt v. McNair*, 413 U.S. 734, 743 (1973); *Roemer v. Board of Public Works*, 426 U.S. 736, 752 (1976). It was this line of cases—specifically *Hunt*—on which the decision below rested. See Pet. App. 35a (quoting *Hunt*, 413 U.S. at 743).

Rightly or wrongly, this Court viewed the *Lemon-Hunt* line of cases, which involved aid to parochial schools, as entirely distinct from the "neutral benefits" cases discussed in the previous section. The Court did not view benefits to religious schools and colleges as the incidental consequence of a neutral program of aid to all private schools,

or as part of a neutral program of financing all forms of education. If the Court had viewed the cases in that way, they would have been utterly inconsistent with the whole line of neutrality cases before and since. Instead, the Court viewed the cases as involving non-neutral aid to beneficiaries that were overwhelmingly religious in character and, indeed, overwhelmingly of one religious denomination. In *Lemon*, for example, 96% of the students who attended the recipient institutions were pupils at religious schools and "most" of those schools were Roman Catholic. 403 U.S. at 610. In the companion case, *Early v. DiCenso*, the "sole beneficiaries" of the Rhode Island Salary Supplement Act were Roman Catholic schools. *Id.* at 615. In *Nyquist*, "all or practically all" of the schools eligible for maintenance or repair grants were Roman Catholic, and 85% of those eligible for other forms of aid were church affiliated. 413 U.S. at 768. See also *Grand Rapids School Dist. v. Ball*, 473 U.S. 373, 379 (1985) ("[f]orty of the forty-one schools at which the programs operate are sectarian").

The parochial school cases thus present a question different from that presented in this case. Here, as in *Witters*, *Mergens* and *Widmar*, the aid flows to a wide range of activities, of which religious activities will constitute only a small fraction. In the parochial school context, the Court must determine whether government assistance programs that are defined in neutral terms but that in practice benefit only a narrow class of religious schools are "neutral" in the constitutionally significant sense.²⁰ This is the issue that divided the principal opinion from the five concurring Justices in *Witters*, and the majority from the dissent in *Mueller*. Those considerations do not affect the decision in the present case, where the formal

²⁰ The Court will also have to decide whether the denominator in any calculus of neutrality will include all schools (including secular public schools) or only private schools, which are predominantly religious. Compare *Nyquist*, 413 U.S. at 782 n.38, with *id.* at 801-03 (Burger, C.J., dissenting in part).

criteria are neutral *and* the resulting array of beneficiaries is broad and diverse.

The parochial school cases are therefore readily distinguishable, and indeed, to make sense of this Court's precedents we must assume that the Court has always viewed them as distinct. It is possible, therefore, for the Court to resolve this case without revisiting the merits of the *Lemon-Hunt* cases on which the Fourth Circuit relied. But if the Court does not distinguish the cases, there are four reasons why the Court should expressly overrule the principle announced in these cases: that government benefits may not be given even on a neutral basis to "pervasively sectarian" institutions or "specifically religious" activities.

First, the focus on specific uses of government funds is inconsistent with the premise that the Establishment Clause limits government action, not private religious activity. See *Corporation of Presiding Bishop v. Amos*, 483 U.S. 327, 337 (1987) ("[f]or a law to have forbidden 'effects' under *Lemon*, it must be fair to say that the government itself has advanced religion through its own activities and influence"); *Witters*, 474 U.S. at 488 ("it does not seem appropriate to view any aid ultimately flowing to the Inland Empire School of the Bible as resulting from a state action sponsoring or subsidizing religion"). So long as the government itself remains neutral, pursuing secular objectives and neither favoring nor disfavoring religion, it should not matter that individual citizens take advantage of the benefits of civil society to advance their religious ideas. Government provides police and fire protection to churches along with other buildings; the fact that religious preaching and worship benefit from the aid does not raise a constitutional problem.

Second, these cases make the mistake of focusing on the specific application at hand, rather than the effect of the program as a whole. The Fourth Circuit disregarded the effect of the SAF program in general (which is to

foster a diverse set of activities and ideas at the University of Virginia), and instead based its decision on the effect, in isolation, of funding *Wide Awake*. See Pet. App. 37a ("providing SAF monies to defray the publication costs of *Wide Awake* inevitably would advance *Wide Awake's* Christian mission"); *id.* (referring to "a continuing annual appropriation for the benefit of a single religion").

As Justice Powell pointed out in *Witters*, this analysis "conflicts with both common sense and established precedent." 474 U.S. at 492 (concurring opinion). "Focus exclusively on the religious component of any activity would inevitably lead to its invalidation under the Establishment Clause." *Lynch v. Donnelly*, 465 U.S. 668, 680 (1984). Rather than examine whether a general program has "the practical effect of aiding religion in this particular case," the court must "look[] to the nature and consequences of the program viewed as a whole." *Witters*, 474 U.S. at 492 (Powell, J., concurring). If the program as a whole is neutral toward religion, it does not matter that a particular use is for a "specifically religious activity."

Third, the prohibition on "specifically religious uses" led to a confusing and unpredictable series of closely divided decisions in which various forms of aid were evaluated for their potential to advance the ideological mission of recipient schools. It appears that there was no workable, predictable, and nonarbitrary way to draw this line. See *Wallace v. Jaffree*, 472 U.S. 38, 110-11 (1985) (Rehnquist, J., dissenting) (summarizing cases). Textbooks are permissible, but filmstrips and tape recorders are not. Bus rides to religious schools are permissible, but bus rides from religious schools to the local police station, city hall, or museum are not. Religiously affiliated grantees can use government funds to teach sexual morality, but public school teachers may not teach remedial math on the premises of a religiously affiliated school. Various diagnostic services are permissible; heating and

repair work is forbidden. If ever a jurisprudence has proven "unworkable," this is it. See *Planned Parenthood v. Casey*, 112 S. Ct. 2791, 2809 (1992) (joint opinion); *Garcia v. San Antonio Metro. Transit Auth.*, 469 U.S. 528, 546 (1985).

Fourth, it is this interpretation of the Establishment Clause that creates the conflicts with freedoms of speech, press, and free exercise of religion, discussed at pages 22-24 *supra*. If religious activities fall within the terms of a neutral benefits program (as *Wide Awake* falls within the terms of the subsidy for "student news, information, opinion, entertainment, or academic communications media groups"), enforcement of a prohibition against "specifically religious uses" requires *discrimination against* religion. That is not a valid constitutional principle. See page 31, *supra*. The "specifically religious activities" cases should either be repudiated or confined to their facts: to aid programs that are not neutral and generally available.

D. The Fourth Circuit's Distinction Between Cash Subsidies And Other Forms Of Aid Is Inconsistent With This Court's Precedents And Bears No Relation To The Purposes Of The Establishment Clause

The Fourth Circuit recognized that modern precedents of this Court are based on neutrality toward religion (Pet. App. 36a-37a), but attempted to draw a line between cash subsidies and other forms of aid. Thus, while the government is compelled (or at least permitted) to be neutral toward religion with regard to free use of government facilities, tax benefits, and police, fire, sewerage, and other services, it must exclude religious activities from the benefits of cash subsidy programs:

Direct monetary subsidization of religious organizations and projects, however, is a beast of an entirely different color. A proper respect for the Establishment Clause compels the Rector and Visitors to pursue a course of "neutrality" toward relig-

ion. Yet providing SAF monies to defray the publication costs of *Wide Awake* inevitably would advance *Wide Awake's* Christian mission.

Pet. App. 37a. See also *id.* at 31a n.31 (“[b]ecause this case involves a direct governmental subsidy of religious expression rather than a mere exemption from the payment of duties, it is not directly on point with *Texas Monthly*”).

The distinction between cash and other benefits, however, is supported neither by this Court’s precedents nor by logic. In *Witters*, this Court unanimously held that it would not violate the Establishment Clause for the state to make a direct cash grant to pay a student’s tuition to study religion at a pervasively sectarian institution, the Inland Empire School of the Bible. The fact that cash was involved was not even mentioned as a significant factor. See also *Nyquist*, 413 U.S. at 782 n.38 (approving provisions of the “G.I. Bill,” which provides cash grants for study at religious institutions, among others).

Indeed, this Court expressly rejected just such a distinction in *Committee for Public Education v. Regan*, 444 U.S. 646 (1980). There it was argued that the state could provide test grading services to religious schools but could not pay cash for the purchase of the same services. “We decline to embrace a formalistic dichotomy that bears so little relationship either to common sense or to the realities of school finance,” the Court explained. “None of our cases requires us to invalidate these reimbursements simply because they involve payments in cash.” *Id.* at 658.

The opinion below is bereft of any plausible explanation of the purposes to be served by a distinction between cash and other valuable benefits. Certainly, we would not say that a secular group—for example, the gay rights group in *Gay & Lesbian Students Ass’n v. Gohn*—had been treated “neutrally” if it were given access to University facilities but cut off from the Student Activities Fund

on account of the content of its speech. The claim that payment of *Wide Awake's* publication costs would “advance” its “Christian mission” (Pet. App. 37a) does not distinguish cases involving other forms of aid. This Court’s decisions in *Lamb’s Chapel*, *Witters*, *Mergens*, *Widmar*, *Mueller*, *Walz*, *Allen*, and *Everson* were not based on the proposition that the religious groups involved did not benefit from the aid, but on the proposition that the aid was neutrally distributed, without reference to religion.

There is no persuasive reason to believe that neutrality has one meaning in the context of cash, and the opposite meaning in the context of other public benefits. Tax benefits, free facilities, and government services may well be more valuable to the group (and more costly to the taxpayer) than a modest cash subsidy. Perhaps the Court of Appeals was thinking only of certain facilities, such as empty classrooms or grounds, which can be made available at little or no marginal cost. But this is exceptional, rather than routine. In *Witters*, *Mueller*, *Walz*, *Allen*, and *Everson*, the marginal cost was substantial, and as readily identifiable as a cash grant.

Nor do cash subsidies necessarily impart any greater “endorsement” than any other form of aid. For a public school to be used for prayer and religious study, as in *Mergens* or *Lamb’s Chapel*, might—to the uninformed onlooker—impart a serious, if mistaken, impression of government endorsement. It is far more improbable that a University of Virginia student, who is aware that the University funds a variety of different and conflicting perspectives, would draw such an inference from the mere fact of SAF funding. This point was made with considerable force by the dissenters in *Zobrest*, who explained why they believed that the cash subsidies in *Witters* and tax benefits in *Mueller* were less objectionable than the provision of a sign language interpreter:

Those cases [*Witters* and *Mueller*] dealt with the payment of cash or a tax deduction, where govern-

mental involvement ended with the disbursement of funds or lessening of tax. * * * When government dispenses public funds to individuals who employ them to finance private choices, it is difficult to argue that government is actually endorsing religion.

Zobrest, 113 S. Ct. at 2474 (Blackmun, J., joined by Souter, J., dissenting).

Moreover, cash subsidies do not necessarily lead to greater government monitoring or entanglement—especially where, as here, payments are made directly to the printer or other suppliers and not to the group. There is no evidence that the funding of other student groups has led to involvement or intrusion in their affairs.

Indeed, the distinction between cash and other valuable benefits is so thin that it would lead to absurd results. The University concedes that, under *Widmar*, the students are entitled to use University facilities, including “University computer terminals, printers, and other equipment employed in the preparation of manuscripts for publication” (Pet. App. 8a), on an equal basis. If the University maintained the equipment for desktop publishing, the students presumably would be able to print *Wide Awake* on those facilities. It makes absolutely no sense to say that petitioners have a free speech right to use University resources to print *Wide Awake* if the University owns the necessary equipment, but that the Establishment Clause cuts the other way if the job must be done by an outside printer. Money and services are fungible; to draw the line between money and services is a classic example of elevating form over substance.

* * * * *

The basic principle at stake in this case is the equality of rights for all who wish to exercise the freedom of speech, without discrimination on the basis of religious or ideological viewpoint. Under the decision below, religious speakers are denied constitutional protections accorded their fellow citizens, and instrumentalities of gov-

ernment are compelled to engage in continuous censorship of religious expression. Nothing could be further from our constitutional ideal of freedom of speech, press, and religion. The American Republic was no more intended to elevate secular speech and ideas over religious speech and ideas than it was to do the opposite. The Establishment Clause was designed to guarantee neutrality and religious pluralism, not to relegate religious speech to second class status. In the words of retired Justice William J. Brennan, Jr.: “Religionists no less than members of any other group enjoy the full measure of protection afforded speech, association, and political activity generally. The Establishment Clause * * * may not be used as a sword to justify repression of religion or its adherents from any aspect of public life.” *McDaniel v. Paty*, 435 U.S. 618, 641 (1978) (concurring opinion).

CONCLUSION

The judgment of the Court of Appeals should be reversed, and the case should be remanded with instructions to the courts below to grant petitioners’ motion for summary judgment.

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RESPONDENT'S

BRIEF

Supreme Court of the United States

October Term, 1984

RONALD W. KENNEDY, et al.,

Petitioners,

**THE BOARD AND VICEPRES OF THE
University of Virginia, et al.,**

Respondents.

**On Writ of Certiorari to the United States
Court of Appeals for the Fourth Circuit**

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QUESTION PRESENTED

Whether a state university is constitutionally required to subsidize with public funds the preparation and distribution of a religious student group's publication designed to advocate a particular religious belief.

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IN THE
Supreme Court of the United States

OCTOBER TERM, 1994

No. 94-329

RONALD W. ROSENBERGER, *et al.*,
Petitioners,

v.

THE RECTOR AND VISITORS OF
THE UNIVERSITY OF VIRGINIA, *et al.*,
Respondents.

**On Writ of Certiorari to the United States
Court of Appeals for the Fourth Circuit**

BRIEF FOR THE RESPONDENTS

STATEMENT OF THE CASE

Petitioners' statement of the case is crucially incomplete. By presenting only a partial history of this litigation, they attempt to raise an issue not properly before this Court.

Specifically, petitioners make two kinds of claims. First, they argue that the University of Virginia Student Activity Fee Funding Guidelines are facially unconstitutional because they exclude religious (and certain other) activities

from funding. This claim was litigated below and is properly before this Court.

Second, petitioners argue that the Guidelines are unconstitutional as applied. They concede, as they must, that publication of *Wide Awake* was a religious activity. They must also concede that on their face the University Guidelines exclude from funding *all* religious activities; facially the Guidelines neither support nor tolerate distinctions among religions. Nonetheless, petitioners assert that "the administration of the Guidelines demonstrates that the University is engaged in systematic discrimination ... among the various religious viewpoints represented at the University of Virginia." Pet. Brief at 19. In other words, petitioners claim that the facially neutral Guidelines have been discriminatorily applied. This as-applied claim is not properly before this Court. To see why this is so requires a brief look at the procedural history of this litigation.

A. Procedural History

Petitioners' original complaint raised both kinds of issues, but the litigation soon took a different turn. On November 12, 1991, *before discovery*, petitioners moved for summary judgment. The University filed a cross-motion for summary judgment, and the case was submitted on a mutually developed record. That record included three issues of *Wide Awake*, the Guidelines, an affidavit from the Associate Dean of Students (who oversees the funding process), the constitutions of various student organizations that received funds, and affidavits from their leaders. It most certainly did not include proof of discrimination by the University.

Nevertheless, petitioners argued in the district court that the money given to the Muslim Law Students Association and the Jewish Law Students Association, which the University

funded as cultural rather than religious activities, showed anti-Christian bias. Specifically, petitioners claimed that "[t]he only apparent explanation for the refusal to fund *Wide Awake* is discomfort with or disapproval of the Christian perspective expressed in its magazine." Pls.' Mem. P. & A. in Supp. of Mot. for Summ. J. at 32. Petitioners mentioned this contention under their Free Speech claim, *id.*, but developed it at length under their Equal Protection claim. See *id.* at 42-47. Accordingly, it was under the latter heading that the district court considered the allegation of discriminatory administration. See *Rosenberger v. Rector and Visitors of the University of Virginia*, 795 F. Supp. 175, 183 (W.D. Va. 1992); Pet. App. 57a ("The last issue for the court to resolve is the plaintiffs' claims that the Guidelines have been applied in less than an even-handed manner.").

After a careful review of all the evidence before it, the district court flatly rejected petitioners' claim of discriminatory administration. The opinion states: "The court has reviewed the entire record independently, and cannot find any evidence to indicate that the decision to deny funding to WAP [Wide Awake Productions] was based on discriminatory intent." *Id.* at 183; Pet. App. 58a. On this and other grounds (chiefly the finding that the allocation of moneys collected from student activity fees was not a public forum), the district court entered summary judgment for the University.

At this point, petitioners effectively abandoned the as-applied claim. The district court's opinion and judgment had made crystal clear that it had found no factual evidence of discriminatory administration. If petitioners had wished (or been able) to produce such evidence, they could have asked for a trial. This they did not do. They did not appeal on the ground that the district court had overlooked a genuine issue of material fact. They did not announce a desire to engage

in discovery. They did not ask the Fourth Circuit to remand for a trial, where their claim of discriminatory enforcement could be put to the proof. In short, petitioners did not avail themselves of the opportunity to prove what they had alleged. On the contrary, they informed the Fourth Circuit that "[t]here are no disputed issues of material fact and the case is ripe for resolution by this Court," Br. of Pls.-Appellants at 3, and devoted their argument entirely to the legal issues.

It is true that in the Fourth Circuit, petitioners again alleged that "the University discriminates against appellants on the ground of their Christian point of view." *Id.* at 27. But petitioners undermined that allegation by not asking that the case be remanded for trial. More importantly, in the Fourth Circuit, petitioners dropped their equal protection claim (which was where discriminatory enforcement had been alleged below) and failed to contest the district court's finding that there was no evidence to support that claim. In the words of the Fourth Circuit, the district court's finding -- that there was "no evidence to indicate that the University's denial of SAF funding to Wide Awake Productions was the product of discriminatory intent" -- "is not contested by the plaintiffs on appeal." *Rosenberger v. Rector and Visitors of the University of Virginia*, 18 F.3d 269, 288 (4th Cir. 1994); Pet. App. 41a. The Fourth Circuit also noted petitioners' "failure to argue the existence of discriminatory intent as a matter of law on appeal" *Id.*

In short, in the district court and even more clearly in the Fourth Circuit, petitioners concentrated on a facial attack on the University's funding Guidelines. Given the procedural history of the litigation, no other claim was fairly presented. That was certainly the understanding of the Fourth Circuit, which in the course of a long and detailed opinion said *not one word* about petitioners' allegation of systematic discrimi-

nation among religious viewpoints (other than to note that the district court's factual findings were not contested on appeal).

The omission cannot be dismissed as oversight, for petitioners' allegation, if credited, would have been dispositive. No legal theory could have justified systematic discrimination among religions. No court would have ruled in favor of the University on those facts. Yet both the district court and the court of appeals did rule in favor of the University. Both courts concluded that the allegation of discriminatory administration was unsupported and that the only question presented by the record was whether the categorical exclusion of all religious activities from University funding violates the First Amendment. This is the only question before the Court.

B. Record Evidence

Petitioners' allegation of systematic discrimination among religions is not only foreclosed; it is also unfounded. Petitioners make much of the fact that the University funded activities of certain cultural organizations with links to specific religious traditions. These include the Muslim Students Association and the Jewish Law Students Association, both of which are linked to religious traditions that happen to be non-Christian. They also include the C.S. Lewis Society, which promotes discussion of literary, moral, and philosophical topics, including the works of the Oxford Christians. In 1990-91, the University also funded Black Voices, a gospel singing group. Not surprisingly, petitioners do not mention these groups when they accuse the University of anti-Christian bias. See Pet. Brief at 19.

Most of these organizations -- the Muslim Students, the Jewish Law Students, and Black Voices -- were funded as

cultural organizations.¹ Under the funding Guidelines, a "cultural organization" is one "which is *primarily* concerned with studying, promoting, and/or expressing racial, ethnic, or affinity group traditions, social forms, art, and/or tastes." Pet. App. 65a (emphasis added). The record contains no evidence that these groups were improperly classified as eligible organizations. Nor have petitioners claimed that they were.

Of more importance here, the University funded these cultural organizations for non-religious activities. Under the funding Guidelines, a "religious activity" is one "which *primarily* promotes or manifests a particular belief(s) in or about a deity or an ultimate reality." Pet. App. 66a (emphasis added). Key elements of such activities are religious observances and proselytizing. The record supports the finding that the activities for which these groups sought funding did not involve religious observances and proselytizing and were therefore not "religious activities" within the meaning of the Guidelines.²

¹The C.S. Lewis Society was funded as a co-curricular organization. J.A. 103.

²In 1990-91, the Muslim Students Association received no funding. In the preceding year, they had received \$164. An affidavit from their president states that their meetings are "essentially informal gatherings of students sharing a common cultural background." J.A. 90. The meetings involve no religious observance or prayer, and there is no evidence of proselytizing or other primarily religious activity.

In 1990-91, the Jewish Law Students Association received \$1,134. An affidavit from their president states that the purpose of the organization is "to represent and promote the interests of Jewish law students through a series of social, educational, and cultural activities," primarily sponsoring speakers on topics of interest to law students. *Id.* at 94. The meetings involve no religious observance or prayer, and there is no evidence of proselytizing or other primarily religious activity.

The history of Black Voices is particularly instructive. In 1990-91, Black Voices applied for and received an appropriation from student activity fees. At that time, the organization's purpose was "to invite individuals to congregate for the intent of singing gospel and contemporary religious music." J.A. 75, 78. Because this activity was primarily cultural, the organization received funds, which were used to purchase equipment and apparel and to defray travel expenses. During the 1990-91 school year, members of Black Voices "engaged in internal discussion about the main purpose of the organization." *Id.* at 76. "Some members felt that the organization should confine itself to cultural activities, while other members felt that the focus of the organization was shifting from simply singing gospel music to assuming a more religious character." *Id.* When the latter view prevailed, Black Voices adopted a new constitution identifying the group's activities as primarily religious and thereafter did not apply for University funding. This episode is characteristic of the administration of the Guidelines. They have been in place for twenty-five years, and *Wide Awake* is the first group to raise any question about the meaning or validity of the exclusion of religious activities from University funding.

In summary, petitioners' allegation of discriminatory administration of the Guidelines is contrary to the University's express policy of excluding all religious activities from public funding, contrary to the facts as found by the district court, contrary to petitioners' own conduct in failing to contest those factual findings on appeal, and contrary to the evidence of record. At this point, petitioners should not be

In 1990-91, the C.S. Lewis Society received \$220. An affidavit from their president states that the organization's activities consist of weekly meeting during which members discuss essays, poems, and excerpts from novels. *Id.* at 102-03. The meetings involve no religious observance or prayer, and there is no evidence of proselytizing or other primarily religious activity.

allowed to advance a factually unsubstantiated, judicially discredited, and previously abandoned allegation of discriminatory administration.

In this Court, petitioners have gone outside the record to lodge with the Court an issue of *Al-Salam*, a newsletter published on two occasions by the Muslim Students Association. This submission seems designed to suggest -- in a forum where the allegation is difficult to contest -- that *Al-Salam* and *Wide Awake* are similarly religious and that the University's decision to fund the former and not the latter reveals its bad faith. See Pet. Brief at 5 n.2. This effort to litigate outside the record is contrary to the precedents of this Court. See *Russell v. Southard*, 12 How. 139, 159 (1851); *New Haven Inclusion Cases*, 399 U.S. 392, 450 n.66 (1970); *Witters v. Washington Dept. of Services for the Blind*, 474 U.S. 481, 486 n.3 (1986).

It is also contrary to sound judicial practice. Submissions outside the record necessarily will not have been tested for accuracy and completeness. This is a case in point, for petitioners have told only part of the story. *Al-Salam* and *Wide Awake* differ in content and, more dramatically, in context and history.

In 1990-1991, the Muslim Students Association received no University funding. They requested funding for the following year as a cultural organization and received a grant of \$246. At the time that decision was made (in spring 1991), the Muslim Students Association had never published a newsletter of any sort. They represented, and there was no evidence to the contrary, that they did not seek funding for

any religious activity.³ Publication of the inaugural issue of *Al-Salam* occurred in February 1992. To the best of the University's knowledge, the publication was not part of any campaign of religious exhortation or proselytizing.

Although publication of the first issue of *Al-Salam* can readily be defended as primarily cultural rather than primarily religious activity,⁴ it is true that a few of the articles are

³The Muslim Student Association budget request for 1991-1992 stated:

"The MSA is planning to publish a newsletter targeting the university community because it feels that it is important for the university as a whole to become aware of Muslim culture and to recognize the diversity of lifestyles of Muslims around the world. Many Americans are misinformed about the Islamic people, and the group feels that an informative newsletter can help such people gain a greater understanding of the world's Muslims."

⁴Dispassionate examination reveals important differences in the content of the two publications. After reviewing three issues of *Wide Awake*, the Fourth Circuit remarked its "unflagging invocation of religious, specifically Christian, themes." 18 F.3d at 273; Pet. App. 7a. A footnote identified only one exception to that statement in three published issues. *Id.* at n.7. As the Fourth Circuit also noted, the Christian symbol of the Cross appears at the top of each page, and at the end of each article. *Id.*; Pet. App. 8a. By contrast, the bulk of the material in *Al-Salam* is not specifically religious but is more concerned with Muslim culture.

The difference in emphasis is revealed in the editorial statements of the two magazines. A "Letter from the Editor" in *Wide Awake*'s inaugural issue states its twofold mission: "to challenge Christians to live, in word and deed, according to the faith they proclaim and to encourage students to consider what a personal relationship with Jesus Christ means." J.A. 45 (*Wide Awake*, Nov./Dec. 1990, p. 2.) The editorial goes on to quote Biblical verses and to close with the "hope that the articles in this issue will inspire you to consider how the Bible applies to your own life today." *Id.* at 46. By contrast, the editorial statement in *Al-Salam* promises "stories and articles ... aimed at revealing the Muslim mentality" and an effort to "bridge the ever-widening gap between Islam and the West." *Al-Salam*, Feb. 1992, p. 2. The editorial closes with the "hope that this magazine presents an opportunity to gain some insight into our thoughts, cultures, and opinions." *Id.* Thus, although there are

specifically religious. When funding was sought for the following year, the first issue of *Al-Salam* was available for inspection, and the question of its religious content was raised. On receiving adequate reassurance on this point, the Student Council Appropriations Committee allocated \$756 to the Muslim Student Association for 1992-1993. With this money, the students published a second and very different issue of *Al-Salam*. Not surprisingly, petitioners did not lodge this publication with the Court.⁵ As inspection will confirm, the second issue of *Al-Salam* is quite plainly a cultural and current events newsletter. Although the first issue might be debatable, no one could characterize the second issue of *Al-Salam* as primarily religious. Thus, *at the most*, petitioners' attempt to go outside the record in this case shows an isolated, borderline, small-scale violation of the University's Guidelines that could not have been anticipated and that was corrected the next year. This history is in no way comparable to *Wide Awake's* request for thousands of dollars in public funds to distribute thousands of copies of a magazine explicitly devoted to religious proselytizing. Nor does it establish systematic discrimination in the administration of the Guidelines.

Despite petitioners' attempt to confuse the issue,⁶ the case before this Court is the case as it was litigated in the district court and the court of appeals. That case presented only one issue: whether the categorical exclusion of all

similarities between the magazines, it would be reasonable to characterize publication of *Al-Salam* as primarily a cultural rather than religious activity.

⁵Accordingly, respondents have done so.

⁶This is the most charitable construction that can be put upon petitioners' attempt to offer the newspaper "testimony" of a student who was not even enrolled in the University at the time of the events in question and hence has absolutely no knowledge of the facts in this case. See Pet. Brief at 20-21 n.12.

religious activities from public funding violates the First Amendment. That is the only issue before the Court, and that is the issue we address below.⁷

SUMMARY OF ARGUMENT

Respondents' argument consists of three points:

First, in the expenditure of public funds, decisions based on the content of speech are familiar, necessary, and entirely legitimate. Routine academic decisions, such as the hiring and promotion of professors and the choice of courses for the curriculum, involve content-based evaluations of speech. To require that such decisions be made without regard to content would be to disable public universities from adopting or implementing educational policies. This the First Amendment does not require.

Second, the University of Virginia Student Activity Fee Funding Guidelines are reasonable. They exclude from funding religious, political, philanthropic, and social activi-

⁷There are two other errors in petitioners' statement of the case. First, petitioners state that the refusal to fund *Wide Awake* "was based solely on the content of the publication." Pet. Brief at 8. That is incorrect. Representations by the group's officers were also considered. See J.A. 72-73 (Affidavit of Ronald J. Stump, Associate Dean of Students): "In public statements during the organization's application and appeal process, *Wide Awake* editors also acknowledged that the magazine has 'a Christian focus and a Christian editorial thrust,' that the editors want the magazine 'to glorify God', and that the organization 'opens each meeting with a prayer.'"

Second, petitioners state that there is no suggestion of mootness. Pet. Brief at 13 n.7. In fact, petitioner officers and editors have graduated, and the University has no evidence that the organization continues to be active. Additionally, petitioners' damages claim is barred by the Eleventh Amendment, which means that it does not support litigation of the merits.

ties. They do not reflect, as petitioners allege, an ideologically driven attempt to suppress a particular point of view.

Third, the public forum doctrine confirms the constitutionality of the funding Guidelines. Under that doctrine, student activity fee funds constitute a non-public forum. In the non-public forum, content-based rules are allowed, "as long as the regulation on speech is reasonable and not an effort to suppress expression merely because public officials oppose the speaker's view." *Perry Educ. Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 46 (1983). The University Guidelines fully meet that standard.

ARGUMENT

I. THE FIRST AMENDMENT DOES NOT FORBID REASONABLE CONTENT DISTINCTIONS IN THE DISTRIBUTION OF PUBLIC FUNDS.

This case is not specifically about religion. The University of Virginia Student Activity Fee Guidelines do not focus exclusively on religion, nor do they treat religious activities differently from a variety of other activities found to be unrelated to the educational purpose of the University.

According to the Guidelines, student activity fees are "public funds which must be administered in a manner consistent with the educational purpose of the University" Pet. App. 61a. To that end, certain organizations and activities are declared eligible for funding. These include, *inter alia*, the Student Council, student newspapers, cultural organizations, fine arts organizations, and service organizations. Other groups and activities are declared ineligible for funding. These include, *inter alia*, religious

organizations and activities, political organizations and activities, philanthropic activities, social entertainment activities, and organizations with exclusionary admission policies.

The Guidelines were challenged by *Wide Awake*, a student journal found ineligible for funding because it is a religious activity. The Guidelines could as easily have been challenged by a political organization (such as the Young Democrats or Young Republicans) or by persons engaged in lobbying or electioneering activity (such as publication of campaign literature), by a philanthropic organization, or even by a fraternity, sorority, or social club. All these groups would have been denied funding on precisely the same ground -- namely, that in the judgment of the Board of Visitors, their activities were not "related to the educational purpose of the University of Virginia" for purposes of funding. Moreover, all these groups could have challenged their exclusion from funding on precisely the same ground raised by *Wide Awake* -- namely, the claim that a content-based restriction on funding violates the First Amendment.⁸ The same constitutional issue would be raised, regardless of whether the activity excluded from funding were religious, political, philanthropic, or social.

Not only do the University Guidelines not aim specifically at religion; they do not inhibit, impede, or penalize any religious activity. On the contrary, the University facilitates student religious and political activities, including publication of *Wide Awake*, by a variety of means short of funding. As

⁸As a religious activity, *Wide Awake* could raise a Free Exercise claim not available to political or social organizations and activities. *Wide Awake* made such a claim in the trial court but abandoned it on appeal. 18 F.3d at 277 n.23; Pet. App. 16a n.23. In any event, the authority on which *Wide Awake* chiefly relies, *Lamb's Chapel v. Center Moriches Union Free School District*, 113 S. Ct. 2141 (1993), is a Free Speech case.

the Fourth Circuit declared, *Wide Awake's* members have the "same access" to University facilities as all other student groups (including more than a dozen other religious organizations). They "are given generous run of University property for their work and programs" and enjoy "liberal recourse to [the University's] computer terminals, printers, and other equipment used to prepare manuscripts for publication." 18 F.3d at 278; Pet. App. 19a. With the University's consent and cooperation, *Wide Awake* has printed and distributed thousands of copies of its magazines on University grounds.

In short, the University has complied fully with *Lambs Chapel v. Center Moriches Union Free School District*, 113 S. Ct. 2141 (1993), on which petitioners rely. *Lambs Chapel* involved access to facilities, not funding of speech. The difference is crucial. When students seek access to facilities not otherwise in use, they seek a benefit that the school can distribute at virtually zero marginal cost. If the institution withholds a benefit that is practically costless to provide, its action can fairly be seen as an attempt to disadvantage -- in other words, as a form of discrimination. In limiting access to facilities, therefore, content-based distinctions are immediately suspect. That is the teaching of *Lambs Chapel*.⁹

Here, however, the issue is not access, but funding. Here the question is not whether the University will withhold a benefit that is costless to provide, but whether the University will incur cost to provide a benefit. Unlike classroom facilities, public funds will never equal the demands upon them. Choices must be made. In the context of a public

⁹In public universities, as in public high schools, classroom space is usually so plentiful that access for after-hours use need not be rationed. If space were scarce, it might well be appropriate, as Justice Stevens has said, to "evaluate the content of a proposed student activity" in setting priority of access. *Widmar v. Vincent*, 454 U.S. 263, 278 (1981) (Stevens, J., concurring in the judgment).

university, virtually every allocation of funds involves speech. The selection of courses for the curriculum, the provision of support for research, and the hiring and promotion of professors are obvious examples. If the First Amendment were construed to demand content-neutrality in funding, routine decisions would invite a lawsuit. Everyday academic determinations would trigger the search for a compelling interest, and judicial review would supplant academic decisions in the management of public universities. In short, to require that scarce dollars be distributed without regard to the content of speech would be to disable public universities from using public funds to pursue public policies. *Lambs Chapel* cannot reasonably be understood to require that result.

Public universities are not the only educational institutions engaged in content-based funding of speech. Public education at all levels routinely does the same. The selection of textbooks and the specification of topics to be covered necessarily involve such choices. Moreover, federal, state, and local governments fund a variety of centers, programs, and activities that involve speech. Content-based decisions involving the funding of expressive activities occur not only in schools, but in contexts ranging from public health campaigns for AIDS awareness to in-service publications by the U.S. military. None of these decisions is content-neutral, nor could they be if government is to retain the capacity to govern.

It is true, of course, that content-based funding decisions require line-drawing. And it is equally true that the difference between choices close to the line may not be the difference between night and day. But such choices are absolutely unavoidable. Any allocation of funds will require them. So long as the choices are made reasonably and without any invidious intent, they should be recognized as a

necessary feature of public education -- and indeed of government generally.

The difference between access and funding was recognized by this Court in *Widmar v. Vincent*, 454 U.S. 263 (1981). The *Widmar* Court rejected content-based limitations on access but explicitly excepted funding: "Nor do we question the right of the University to make academic judgments as to how best to allocate scarce resources" *Id.* at 276. Without this limitation, *Widmar* and *Lamb's Chapel* would become a judicial juggernaut, constitutionalizing the ubiquitous content-based decisions that schools, colleges, and other government entities routinely make in the allocation of public funds.

This Court has not often heard First Amendment challenges to government funding. The dearth of precedent¹⁰ reflects a principle so well established that it is

¹⁰Petitioners rely chiefly on *Lamb's Chapel*, which concerns access, not funding. For the contention that the First Amendment requires content-neutrality in funding, petitioners rely on two circuit court decisions: *Gay & Lesbian Students Ass'n v. Gohn*, 850 F.2d 361 (8th Cir. 1988), and *Joyner v. Whiting*, 477 F.2d 456 (4th Cir. 1973). See Pet. Brief at 16-17. Both are inapposite.

Gohn involved the University of Arkansas's Student Senate's denial of funding to a gay rights group. Although the Eighth Circuit loosely used both "content" and "viewpoint" to describe the basis for the funding denial, the court plainly recognized that the denial involved blatant viewpoint discrimination based on discriminatory animus toward homosexuals. Similarly, *Joyner* involved a university president's withdrawal of financial support for the campus newspaper in retaliation for an editorial advocating black separatism. Like *Gohn*, *Joyner* is a clear case of ideologically driven viewpoint discrimination. Cf. *Rust v. Sullivan*, 500 U.S. 173, 211 (Blackmun, J., dissenting) (describing the regulations at issue there as unconstitutional because they were based on "ideological viewpoint" and accomplished an "intrusive, ideologically based regulation of speech" and therefore unconstitutional).

seldom questioned: When government funds speech, it may consider content. On the few occasions when this principle has been questioned, this Court's response has been emphatic and unequivocal.

The clearest example is *Regan v. Taxation With Representation*, 461 U.S. 540 (1983). That case involved a tax subsidy. Organizations qualifying as tax-exempt under § 501(c)(3) of the Internal Revenue Code are eligible to receive tax-deductible contributions. As this Court recognized, tax-deductible contributions amount to a government subsidy. *Id.* at 544. Under the Internal Revenue Code, § 501(c)(3) organizations cannot engage in substantial lobbying. Organizations that do engage in substantial lobbying can qualify as tax-exempt under § 501(c)(4), but this classification renders them ineligible for tax-deductible contributions. In *Regan*, the plaintiffs argued that withholding the subsidy of deductible contributions because they intended to engage in protected First Amendment activity violated their First Amendment rights. This Court unanimously rejected their claim, holding that the government's refusal to pay for lobbying activities did not violate anyone's rights. Speaking for the Court, Justice Rehnquist said: "We again reject the 'notion that First Amendment rights are somehow not fully realized unless they are subsidized by the State.'" *Id.* at 546 (quoting *Cammarano v. United States*, 358 U.S. 498, 515 (1959) (Douglas, J., concurring)); see also *id.* at 545 ("This Court has never held that Congress must grant a benefit ... to a person who wishes to exercise a constitutional right.").

Respondents agree that ideologically driven attempts to suppress a particular point of view are presumptively unconstitutional in funding, as in other contexts, but that is not the issue here. Neither *Gohn* nor *Joyner* supports a general requirement of content-neutrality in funding, nor does any decision of this Court. There is a complete absence of any Supreme Court authority for the contention that government funding of expressive activities must be done without regard to their content. See p. 21 n.12, *infra*.

Regan's parallels with the instant controversy are exact. Here, as in *Regan*, petitioners argue that withholding a subsidy because they intend to engage in protected First Amendment activity violates their First Amendment rights. *Regan's* unanimous ruling to the contrary disposes of that claim.

This much petitioners may concede. But what about the argument that, even though petitioners do not have a constitutional right to demand funding, they do have a right not to be "discriminated against" by denying to them funding provided to other activities? This argument was also considered and rejected in *Regan*. There, as here, plaintiffs claimed that selective funding was unconstitutional. But this Court unanimously rejected that claim. Speaking for the Court, Justice Rehnquist noted that the lower court had ruled against the government on the ground that the Internal Revenue Code made the subsidy of tax-deductible contributions available "on a discriminatory basis":

"Its opinion suggests that strict scrutiny applies whenever Congress subsidizes some speech, but not all speech. This is not the law."

Id. at 548.

A clearer rejection of *Wide Awake's* position can scarcely be imagined. Here petitioners (joined on this point by the Fourth Circuit) claim that strict scrutiny applies because the University subsidizes some speech but not all speech. As *Regan* declared: "This is not the law." Nor could it be, if state-supported colleges, schools, and universities are to retain any independence in deciding how to allocate public funds. Treating every government decision to fund speech as discrimination against all other speech and thus subject to "compelling interest" review would bring the

courts into close judicial scrutiny of everyday academic decisions, no matter how routine.

Note also that a condition deemed important by the *Regan* concurrence is fully satisfied here. Justice Blackmun, joined by Justices Brennan and Marshall, wrote separately to emphasize that plaintiffs were not required to give up lobbying to remain tax-exempt, but were free to qualify as tax-exempt under § 501(c)(4), which accords all the advantages of that status except the subsidy of tax-deductible contributions. *Id.* at 552-53 (Blackmun, J., concurring). The same is true here. *Wide Awake's* members were not required to give up religious activities. They were free to qualify (and did qualify) as a contracted independent organization, which gave them all the advantages of that status (including use of University facilities), except the subsidy of appropriations from student activity fees.

The two cases are alike in another respect as well. The *Regan* plaintiffs were free to maintain two parallel organizations under §§ 501(c)(3) and (c)(4). *Id.* at 544. Thus, the fact that they engaged in substantial lobbying under § 501(c)(4) did not make them ineligible for the tax subsidy for non-lobbying activities under § 501(c)(3). The effect of these provisions was to withhold the government subsidy from lobbying activities, not to penalize anyone for engaging in such activities. The same is true here. *Wide Awake* was found ineligible for funding as a religious activity, but its members remained eligible for funding for any non-religious activities in which they might choose to engage. The fact that they took part in religious activities did not make them ineligible to receive funds for other activities. Again, the effect of the University's Guidelines is to withhold a government subsidy from religious activities, not to penalize anyone for engaging in such activities.

In short, this case and *Regan* are aligned as closely as any two cases could be. This Court's unanimous opinion in *Regan* settles the constitutionality of the University funding Guidelines.

The principle of *Regan* was reaffirmed in *Rust v. Sullivan*, 500 U.S. 173 (1991). *Rust* followed a long line of cases holding that the constitutional right to abortion does not entail a right to government funding.¹¹ *Rust* applied those precedents to a federal regulation prohibiting recipients of federal funds for family-planning from counseling abortion or providing referrals for abortion. Chief Justice Rehnquist's opinion for the Court speaks directly to the case at hand:

"Petitioners' assertions ultimately boil down to the position that if the Government chooses to subsidize one protected right, it must subsidize analogous counterpart rights. But the Court has soundly rejected that proposition. Within far broader limits than petitioners are willing to concede, when the government appropriates public funds to establish a program it is entitled to define the limits of that program."

Id. at 194 (citations omitted).

Regan and *Rust* state the principle on which this case should be decided: The First Amendment does not forbid

¹¹*Maher v. Roe*, 432 U.S. 464 (1977); *Poelker v. Doe*, 432 U.S. 519 (1977); *Harris v. McRae*, 448 U.S. 297 (1980); *Williams v. Zbaraz*, 448 U.S. 358 (1980); *Webster v. Reproductive Health Services*, 492 U.S. 490 (1989).

reasonable content-distinctions in the distribution of public funds. There is simply no precedent to the contrary.¹²

Indeed, even the dissenting opinions in *Rust* are completely consistent with the University's position in this case. The facts of *Rust* raised two concerns not present here.

¹²Petitioners rely on *FCC v. League of Women Voters*, 468 U.S. 364 (1984), which involved a First Amendment challenge to the Public Broadcasting Act of 1967, as amended. That statute authorized grants to noncommercial television and radio stations but prohibited all grantees from editorializing. The restriction did not apply only to government funds; it prohibited any grant recipient from using any funds for editorializing. In other words, the statute required broadcasters to give up editorializing in order to remain eligible for government money. As this Court explicitly noted, it was precisely this feature that rendered the statute unconstitutional. *Id.* at 399-401. By contrast, in this case, as in *Regan*, no one has to stop engaging in ineligible activities in order to receive funding for eligible activities. Had that been true in *League of Women Voters*, the case would have come out differently. *Id.* at 400.

(This Court made the same point in rejecting an "unconstitutional conditions" argument in *Rust v. Sullivan*. As the Court pointed out, "unconstitutional conditions" cases involve situations in which the Government has placed a condition on the recipient of the subsidy rather than on a particular program or service, thus effectively prohibiting the recipient from engaging in the protected conduct outside the scope of the federally funded program." 500 U.S. at 197 (emphasis in original). The University Guidelines have no such feature. In the language of "unconstitutional conditions," the Guidelines involve no "condition," unconstitutional or otherwise.)

Petitioners also rely on *Arkansas Writers' Project, Inc. v. Ragland*, 481 U.S. 221 (1987), which is also inapposite. That case did not involve funding. Instead, it involved discriminatory taxation. As this Court has subsequently made clear, *Arkansas Writers' Project* is simply irrelevant to "a case of the Government refusing to fund activities, including speech, which are specifically excluded from the scope of the project funded." *Rust v. Sullivan*, 500 U.S. at 194-95.

Finally, as has been explained, petitioners rely on two Court of Appeals decisions involving ideologically driven attempts to suppress a particular point of view. That is not the case here. See p. 16 n.10, *supra*.

First, there was the question whether the agency regulations at issue in *Rust* were a permissible construction of the underlying statute. See *id.* at 204-07 (Blackmun, J., dissenting); *id.* at 220-23 (Stevens, J., dissenting); *id.* at 223-25 (O'Connor, J., dissenting). No such issue exists here, as the University's Board of Visitors has unquestioned authority to adopt funding Guidelines. VA. CODE ANN. § 23-69 *et seq.* (1950).

More importantly, *Rust* involved a very aggressive use of the power of the purse by an administration with a well-advertised hostility to abortion to restrict speech favorable to abortion. Although this restriction attached to funding, it is likely that the marginal cost of allowing funded facilities to provide abortion counseling or referral would have been slight. In these circumstances, it was possible to view the prohibition on abortion counseling as an ideologically based attempt to suppress a particular point of view rather than as a legitimate limitation on public funding. See *id.*, at 207-11 (Blackmun, J., dissenting).

In other words, *Rust* might have been thought (and by some Justices was thought) to raise an issue of unconstitutional viewpoint discrimination. As petitioners make a similar argument here, it is that question to which we now turn.

II. EXCLUSION OF RELIGIOUS ACTIVITIES FROM PUBLIC FUNDING IS NOT UNCONSTITUTIONAL VIEWPOINT DISCRIMINATION.

Perhaps recognizing the ubiquity and inevitability of content distinctions in funding, petitioners try to portray the University Guidelines as a form of "viewpoint discrimination." They are aided in this effort by a certain plasticity in the terms. Viewed abstractly, "content" and "viewpoint"

are not completely distinct, and it is often possible to characterize one as the other. Thus, petitioners claim that the exclusion of all religious activities from public funding suppresses a particular view or perspective and therefore is "plainly discrimination on the basis of viewpoint." Pet. Brief at 19.

The key to this assertion is the assumption that all religious activities -- whether Christian, Muslim, Jewish, Hindu, Zoroastrian, Buddhist, or other -- embody a common view or perspective. On this reasoning, the exclusion of all political activities from public funding would also be viewpoint discrimination. The Guidelines define "political activity" to include lobbying and electioneering. Pet. App. 65a; cf. *Regan v. Taxation With Representation*, 461 U.S. 540 (1983). If all religious activities can be said to embrace a common view or perspective, then so can all lobbying (the view that social change should be effected through legislation) or electioneering activities (the view that participation in the electoral process is important and valuable). And so can philanthropic giving or social entertainment or any other category of activity. In fact, any exclusion from funding can be characterized as viewpoint discrimination simply by attributing to all speech within the excluded category a least-common-denominator view or perspective. The result is to render the concept of viewpoint discrimination circular and meaningless.

Of course, respondents do not deny that religious activities encompass particular views and beliefs, any more than one could deny that lobbying or electioneering or philanthropic activities encompass particular views and beliefs. But only by retreating to a level of vacuous generality can one assert that all religious activities (or all lobbying or electioneering or philanthropic activities) reflect the *same* view or perspective. Petitioners' argument goes too far. If an

across-the-board exclusion of all religious activities from funding amounts to viewpoint discrimination, then so does the exclusion of all lobbying, electioneering, or philanthropic activities. Indeed, if the exclusion of all religious activities from public funding constitutes viewpoint discrimination, then so does every categorical limitation on public funding of expressive activities. In short, petitioners' argument turns every content-based limitation on funding into unconstitutional viewpoint discrimination.

Even if petitioners' argument were arbitrarily limited to religion, its sweep would be revolutionary. Petitioners assert that the exclusion of religious activities from funding available to other activities amounts to unconstitutional discrimination against those "espous[ing] a religious view." Pet. Brief at 17. If that is true, every government at every level is guilty of it every day. Public schools throughout America teach history, science, math, languages, literature, and civics. They also fund student government, debate teams, various kinds of assemblies and field trips, and a wide variety of other programs. They do not teach religion. Of course, students may study religion "from the outside," in the same way they study history or philosophy. But public schools do not use public money to support religious exhortation or proselytizing. This is exactly the line drawn by the University of Virginia. If that line is unconstitutional, then so is the operation of every public school.¹³

¹³As was noted previously, *Lamb's Chapel* is not to the contrary. That case involved access to school facilities, which the school district could have allowed at virtually no cost. That the school district instead barred presentation of religious views -- and only religious views -- from using available facilities was therefore discrimination. Here the University has provided complete access to facilities. All that the University has withheld is money. As was argued above, withholding public funding from religious activities -- and from political, philanthropic, and social activities -- cannot sensibly be seen as viewpoint discrimination.

Petitioners argument poses the same threat to higher education. The University of Virginia maintains a distinguished department of religious studies. That department provides instruction in religious thought and scholarship. It does not provide instruction in faith. Of course, the religious studies department does not discriminate against those who "espouse a religious view." Indeed, it seems likely that many professors and students are drawn to the study of religion by their faith. Nonetheless, the academic instruction is secular. The religious studies department does not offer courses in indoctrination or pastoring, nor does it hire persons whose accomplishments lie in those fields. In short, the University's funding of the religious studies department carries the same limitation that applies to student activity fees. If the latter is unconstitutional, then the former is also. And religious studies programs at every other public university would be similarly vulnerable.

Nor would the federal government escape the backwash of petitioners' argument. Federal funding programs typically exclude religion. Sometimes the exclusion is explicit, as in the statutory criteria for the award of graduate and professional fellowships. 20 U.S.C. §§ 1134-1134w (Supp. V 1993). Congress expressly provided: "No fellowship shall be awarded under this subchapter for study at a school or department of divinity." 20 U.S.C. § 1134b(3) (Supp. V 1993). Under petitioners' reasoning, this exclusion discriminates against those who wish to espouse a religious view and is therefore unconstitutional. Pet. Brief at 17. Similarly, the Child Care and Development Block Grant Act of 1990 declares that no financial assistance "shall be expended for any sectarian purpose or activity including sectarian worship or instruction." 42 U.S.C. § 9858k(a) (Supp. V 1993). This statute would also be unconstitutional if the exclusion of all religious activities were treated as viewpoint discrimination. And the same axe would fall on the Corporation for Public

Broadcasting (CPB), which prohibits grants for programming "designed to further the principles of religious philosophies." Corporation for Public Broadcasting, Eligibility Criteria for Television Community Service Grants para. 7(b) (Aug. 1992). Federal regulations also provide that the category of public television services eligible for CPB grants "does not include essentially sectarian programming." 15 C.F.R. § 2301.1 (1994). The parallels between these regulations and the University funding Guidelines could scarcely be more exact.¹⁴

More often, federal funding programs exclude religious activities simply by not declaring them eligible. For example, federal law authorizes the Secretary of Education to make grants "to establish and operate National Teacher Academies." 20 U.S.C. § 1103 (Supp. V 1993). The subjects for which such Academies may be established are limited to English, mathematics, science, history, geography, civics and government, and foreign languages. *Id.* at § 1103(b). Religion is not included.¹⁵ A citation of comparable state and local funding programs that would be made vulnerable to constitutional attack by petitioners' argument on viewpoint discrimination would probably exhaust the fifty-page limit on briefs filed in this Court.

¹⁴Federal law also provides that: "No noncommercial educational broadcasting station [which is publicly funded] may support or oppose any candidate for political office." 47 U.S.C. § 399 (1988). Again, federal law parallels the University Guidelines. Both stand or fall on the same reasoning.

¹⁵*Cf.* Michael W. McConnell, *The Selective Funding Problem: Abortion and Religious Schools*, 104 Harv. L. Rev. 989, 1018 (1991) (suggesting that government's refusal to fund the secular component of education in church-related schools is constitutionally problematic but acknowledging that "it is just and proper for the government to refuse to pay the incremental cost of religious components of the education, in light of the conscientious objection many taxpayers have toward mandatory support for religious instruction").

Finally, the argument that excluding religious activities from funding equals unconstitutional viewpoint discrimination contradicts the essential rationale of the Establishment Clause. Although its opinion on this point is not entirely clear, the Fourth Circuit seems to have concluded that allowing religious activities to receive University funds would violate the Establishment Clause.¹⁶ Petitioners attack this conclusion and urge this Court to overrule *Lemon v. Kurtzman*, 403 U.S. 602 (1971), *Hunt v. McNair*, 413 U.S. 734 (1973), and subsequent cases. As the Brief of the Baptist Joint Committee on Public Affairs, *et al.*, as Amicus Curiae demonstrates, there are substantial contrary arguments. However, the question whether the Constitution would *permit* the University to fund student religious activities is not necessary to the decision of this case. The true significance of the Establishment Clause for this litigation is clearer and less controversial.¹⁷

Despite the importance of content-neutrality in many contexts, it seems plain to the point of obviousness (as was argued above) that content-neutrality cannot be required in

¹⁶The opinion does not make clear whether the Fourth Circuit concluded that allowing funding would actually violate the Establishment Clause or only that the substantiality of that question justified the refusal to withhold funds. See 18 F.3d at 281-87; Pet. App. 26a-39a.

¹⁷Although respondents do not think it necessary to address the hypothetical question whether the Establishment Clause would permit government aid to religion in this context, we note that in *Bowen v. Kendrick*, 487 U.S. 589 (1988), this Court upheld participation of religious-affiliated organizations in funding under the Adolescent Family Life Act precisely because there was no showing that the money would flow to "pervasively sectarian" organizations, *id.* at 610 *et seq.*, and remanded for the district court to determine whether in particular cases federal money had been used to fund "specifically religious activities." *Id.* at 621. Whether *Bowen* and similar cases should be interpreted to prohibit the University from funding religious activities may be an open question (as well as one not presented on these facts), but at least they flash a yellow light.

funding. The demand for funds will always outstrip resources. Allocations *must* be made. Insofar as petitioners object to all content-based criteria for the distribution of public funds, their claim is answered by necessity. It follows that the real basis for petitioners' suit must be the claim that, even though content-based judgments are inevitable in public funding, focusing on religious activity is not permissible. That is the import of petitioners' attempt to portray the denial of funding to religious activities as unconstitutional viewpoint discrimination. Yet surely, whatever else it may mean, the Establishment Clause at least shows that financial separation of church and state is not *unconstitutional*. If, as petitioners (wrongly) contend, denying funding to religious activities is viewpoint discrimination, it is a viewpoint discrimination that the Constitution itself embraces -- and in some circumstances commands. At the very least, the Establishment Clause settles the constitutional *permissibility* of financial disengagement from religion.

Petitioners' contrary argument rests on a peculiar view of the Constitution. Basically, petitioners claim that University funding for *Wide Awake* is either constitutionally prohibited or constitutionally compelled. Either the Establishment Clause forbids funding of religious activities, or the Free Speech Clause commands it. In this scheme, all government interactions with religion are either prohibited or compelled; there is no middle ground. The result is to eliminate the authority of governments at all levels to set their own policies in any matter that may somehow affect religion.

Surely this is wrong. Surely not every interaction between government and religion is constitutionally dictated. Surely there is zone of reasonableness in which government action is neither so disadvantageous to religion as to violate Free Speech Clause (or Free Exercise Clause) nor so

advantageous to religion as to violate the Establishment Clause. Surely there is some room left for non-judicial decisionmaking. Yet petitioners' argument would extend one constitutional guarantee right up to the boundary of the other, thereby transforming every public policy that somehow intersects religion into a question of constitutional law that can be resolved only after extensive litigation. The extravagance of such a position is one more reason to reject petitioners' effort to characterize the exclusion of religious activities from funding as unconstitutional viewpoint discrimination.

Respondents emphasize, however, that a complete theory of the Establishment Clause or its relation to other constitutional guarantees is not necessary to the decision of this case. The fundamental objection to petitioners' argument is not that it implicates the Establishment Clause but that it would defeat the ability of public education at all levels to control the use of public funds.

III. THE CONSTITUTIONALITY OF THE STUDENT ACTIVITY FEES GUIDELINES IS CONFIRMED BY THE PUBLIC FORUM DOCTRINE.

The fundamental distinction between suppression of speech and the refusal to subsidize speech is not missing from the precedents of this Court. It is stated most clearly in cases dealing explicitly with funding. See *Regan v. Taxation With Representation, supra*; *Rust v. Sullivan, supra*. It is also reflected in the long line of cases dealing with access to government property for expressive activity. These cases define the doctrine of the public forum.

The public forum doctrine guarantees content-neutral regulation of speech in streets, parks, and other public spaces that "time out of mind, have been used for purposes of

assembly, communicating thoughts between citizens, and discussing public questions." *Hague v. Comm. for Indus. Org.*, 307 U.S. 496, 515 (1939). In a true public forum, the government can limit the time, place, and manner of speech, but can exclude speech based on content only if it can "show that its regulation is necessary to serve a compelling state interest and that it is narrowly drawn to achieve that end." *Perry Educ. Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 45 (1983).

Content-neutrality also must prevail in those "limited" public forums that the government voluntarily opens to expressive activity. *Id.* at 45-46. Limited public forums may be created in particular places or activities. See *Southeastern Promotions, Ltd. v. Conrad*, 420 U.S. 546 (1975) (municipal theater); *City of Madison Joint Sch. Dist. v. Wisconsin Public Employment Relations Comm'n*, 429 U.S. 167, 174-76 (1976) (school board meetings).

When a state-supported university voluntarily opens its facilities for after-hours use by student groups, it creates a limited public forum. *Widmar v. Vincent*, 454 U.S. at 264-70. For so long as the limited public forum is held open, the university cannot enforce content-based exclusions of speech absent a compelling interest. This principle explains *Widmar* and *Lambs Chapel*. It governs questions of access to university facilities -- a benefit that can be provided at practically no marginal cost. The University of Virginia has complied fully with the teachings of *Widmar* and *Lambs Chapel*. Indeed, the University has gone beyond the requirements of those cases in making available for the publication of *Wide Awake* (and other religious, political, etc., activities) not only access to University buildings but to the University's computers and printers.

In contrast, the appropriation of public moneys can never create a limited public forum. There can be no principle of open access to funds, because the funds will never equal the demands upon them. Every dollar given to one program or activity cannot be given to some other program or activity; there is no benefit, like access to otherwise unused facilities, that can be made available without rationing. It follows that in funding, unlike access, rules of inclusion and exclusion are not only legitimate but inevitable, a necessary consequence of scarce resources. To require that funding decisions be content-neutral would cripple government and lead to a kind of fiscal anarchy.

The fundamental distinction between funding and access was recognized in *Widmar*, where the Court required content-neutrality in access but explicitly disavowed any intent to "question the right of the University to make academic judgments as to how best to allocate scarce resources" 454 U.S. at 276. The point was amplified by Justice Stevens in concurrence, *id.* at 278:

"In performing their learning and teaching missions, the managers of a university routinely make countless decisions based on the content of communicative materials. They select books for inclusion in the library, they hire professors on the basis of their academic philosophies, they select courses for inclusion in the curriculum, and they reward scholars for what they have written. In addition, in encouraging students to participate in extracurricular activities, they necessarily make decisions concerning the content of those activities."

As both the Court and Justice Stevens recognized, in the distribution of scarce resources, content distinctions are familiar, legitimate, and necessary.

It follows that the appropriation of public moneys is not a public forum, limited or otherwise. It is rather, as the district court in this case correctly found, a "non-public forum." 795 F. Supp. at 178-81; Pet. App. 46a-53a. Accord *Cornelius v. NAACP Legal Defense & Educ. Fund, Inc.*, 473 U.S. 788 (1985) (holding that the allocation of moneys collected from federal employees by the Combined Federal Campaign is a non-public forum).¹⁸ The category of the non-public forum refers to government property (here student activity fees) that is not voluntarily opened to all comers. In the non-public forum, the government can set priorities and pursue policies, and it can do so by reference to the content of funded speech. The scope of the government's authority in non-public forums was spelled out by this Court in *Perry Education Ass'n*, 460 U.S. at 46:

"In addition to time, place, and manner regulations, the State may reserve the forum for its intended purposes, communicative or otherwise, as long as the regulation on speech is reasonable and not an effort to suppress expression merely because public officials oppose the speaker's view."

¹⁸Indeed, *Cornelius* goes farther than the University Guidelines. Contributions to the Combined Federal Campaign are voluntary and may be designated for particular recipients. In this scheme, content-based limitations on the receipt of funds are not strictly necessary; it would be possible for the government to facilitate the voluntary contributions of federal employees without any governmental rules of allocation. Student activity fees, by contrast, are mandatory. They are collected like taxes, and like the distribution of revenues raised by taxes, there *must* be official control over the distribution of scarce resources. Those decisions might be made by general rule, such as the Guidelines, or by case-by-case application, such as appearances before the Student Council Appropriations Committee, or by a combination of both. One way or another, some official allocation of funds is absolutely inevitable in this case, unlike in *Cornelius*. In light of these (and other) differences, the concerns voiced by the *Cornelius* dissenters are inapplicable here. See 473 U.S. at 813 (Blackmun, J., with whom Brennan, J., joined, dissenting); *id.* at 833 (Stevens, J., dissenting).

Here the University of Virginia has completely met the standard for regulation of speech in a non-public forum. It has established a mechanism for allocating funds raised by student activity fees. This mechanism is exactly comparable to the appropriations process used by governments at all levels. It necessarily involves decisions based on the content of the activities funded. At the University of Virginia, those judgments are made retail by the Student Council Appropriations Committee, which decides whether particular applicants will receive all, some, or none of the amounts requested. Funding decisions are also made wholesale by the Board of Visitors. The Board has identified certain broad categories of activities for which funding would be consistent with the educational purpose of the University and other broad categories of activities for which funding would not be consistent with the educational purpose of the University. The exclusion of religious, political, philanthropic, and social activities from University funding is plainly reasonable. It may be that different eligibility requirements would also be reasonable. It may be that petitioners or their amici might prefer different rules. But the governance of the University is lodged by statute with the Board of Visitors, and the policy adopted by the Board is plainly reasonable. That is all the law requires.

Petitioners make much of the fact that the exclusion of "primarily" religious activities from funding requires line-drawing. Of course it does. So does every funding policy. If petitioners were able to force the University to allow funding for religious (and political, etc.) activities, line-drawing problems would be multiplied down the road. The Student Council Appropriations Committee would have to decide which religious activities to fund and in what amounts. It would have to decide whether to consider only the number of students involved in each activity (which would encourage padding of membership rolls) or to evaluate

the contribution of each activity to the University community. Who knows how such determinations would be made? Similar difficulties would arise in funding political activities. To which campaigns should the University give money? In what amounts? Obviously, the "solution" of allowing all groups to be eligible for funding would not cure the problems of line-drawing in allocating funding; if anything, it would make them worse.

Finally, the exclusion of certain broad categories of organizations and activities from University funding is "not an effort to suppress expression merely because public officials oppose the speaker's view." *Perry Educ. Ass'n*, 460 U.S. at 46. That is obvious from the generality and impersonality of the funding Guidelines¹⁹ and from the long tradition of financial disengagement between government and religion. In truth, the excluded organizations and activities do not share any common view, except at such a high level of abstraction as to be meaningless. Moreover, both the District Court and the Court of Appeals found that the administration of the Guidelines did not reveal any effort to suppress a particular point of view. The public forum doctrine thus confirms that the University's funding Guidelines are fully consistent with the First Amendment and with the decisions of this Court.

CONCLUSION

As was stated at the outset, this case is not specifically about religion. It is, rather, about the ability of public education at all levels to set priorities for the use of public

¹⁹Cf. *Gay & Lesbian Students Ass'n v. Gohn, supra*, and *Joyner v. Whiting, supra*, in both of which the denial of funding was quite specifically targeted at an officially disfavored group or opinion.

funds. The University of Virginia's decision to fund only those activities closely related to the educational purpose of the University is both right and necessary. The University's decision to implement that policy by withholding funds from all religious, political, philanthropic, and social activities is a reasonable content-based limitation on public funding. It does not represent any sort of ideologically driven attempt to suppress a particular point of view. Consequently, the University funding Guidelines should be upheld.

Respectfully submitted,

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